FICTION

Miscellaneous Papers

Dickens, Charles

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MISCELLANEOUS PAPERS

BY CHARLES DICKENS

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THE AGRICULTURAL INTEREST

THE present Government, having shown itself to be particularly clever in its management of Indictments for Conspiracy, cannot do better, we think (keeping in its administrative eye the pacification of some of its most influential and most unruly supporters), than indict the whole manufacturing interest of the country for a conspiracy against the agricultural interest. As the jury ought to be beyond impeachment, the panel might be chosen among the Duke of Buckingham's tenants, with the Duke of Buckingham himself as foreman; and, to the end that the country might be quite satisfied with the judge, and have ample security beforehand for his moderation and impartiality, it would be desirable, perhaps, to make such a slight change in the working of the law (a mere nothing to a Conservative Government, bent upon its end), as would enable the question to be tried before an Ecclesiastical Court, with the Bishop of Exeter presiding. The Attorney-General for Ireland, turning his sword into a ploughshare, might conduct the prosecution; and Mr. Cobden and the other traversers might adopt any ground of defence they chose, or prove or disprove anything they pleased, without being embarrassed by the least anxiety or doubt in reference to the verdict.

That the country in general is in a conspiracy against this sacred but unhappy agricultural interest, there can be no doubt. It is not alone within the walls of Covent Garden Theatre, or the Free Trade Hall at Manchester, or the Town Hall at Birmingham, that the cry "Repeal the Corn-laws!" is raised. It may be heard, moaning at night, through the straw-littered wards of Refuges for the Destitute; it may be read in the gaunt and famished faces which make our streets terrible; it is muttered in the

thankful grace pronounced by haggard wretches over their felon fare in gaols; it is inscribed in dreadful characters upon the walls of Fever Hospitals; and may be plainly traced in every record of mortality. All of which proves, that there is a vast conspiracy afoot, against the unfortunate agricultural interest.

They who run, even upon railroads, may read of this conspiracy. The old stage-coachman was a farmer's friend. He wore top-boots, understood cattle, fed his horses upon corn, and had a lively personal interest in malt. The engine-driver's garb, and sympathies, and tastes belong to the factory. His fustian dress, besmeared with coal-dust and begrimed with soot; his oily hands, his dirty face, his knowledge of machinery; all point him out as one devoted to the manufacturing interest. Fire and smoke, and red-hot cinders follow in his wake. He has no attachment to the soil, but travels on a road of iron, furnace wrought. His warning is not conveyed in the fine old Saxon dialect of our glorious forefathers, but in a fiendish yell. He never cries "ya-hip", with agricultural lungs; but jerks forth a manufactured shriek from a brazen throat.

Where _is_ the agricultural interest represented? From what phase of our social life has it not been driven, to the undue setting up of its false rival?

Are the police agricultural? The watchmen were. They wore woollen nightcaps to a man; they encouraged the growth of timber, by patriotically adhering to staves and rattles of immense size; they slept every night in boxes, which were but another form of the celebrated wooden walls of Old England; they never woke up till it was too late—in which respect you might have thought them very farmers. How is it with the police? Their buttons are made at Birmingham; a dozen of their truncheons would poorly furnish forth a watchman's staff; they have no wooden walls to repose between; and the crowns of their hats are plated with cast-iron.

Are the doctors agricultural? Let Messrs. Morison and Moat, of the Hygeian establishment at King's Cross, London, reply. Is it not, upon the constant showing of those gentlemen, an ascertained fact that the whole medical profession have united to depreciate the worth of the Universal Vegetable Medicines? And is this opposition to vegetables, and exaltation of steel and iron instead, on the part of the regular practitioners, capable of any interpretation but one? Is it not a distinct renouncement of the agricultural interest, and a setting up of the manufacturing interest instead?

Do the professors of the law at all fail in their truth to the beautiful maid whom they ought to adore? Inquire of the Attorney-General for Ireland. Inquire of that honourable and learned gentleman, whose last public act was to cast aside the grey goose-quill, an article of agricultural produce, and take up the pistol, which, under the system of percussion locks, has not even a flint to connect it with farming. Or put the question to a still higher legal functionary, who, on the same occasion, when he should have been a reed, inclining here and there, as adverse gales of evidence disposed him, was seen to be a manufactured image on the seat of Justice, cast by Power, in most impenetrable brass.

The world is too much with us in this manufacturing interest, early and late; that is the great complaint and the great truth. It is not so with the agricultural interest, or

what passes by that name. It never thinks of the suffering world, or sees it, or cares to extend its knowledge of it; or, so long as it remains a world, cares anything about it. All those whom Dante placed in the first pit or circle of the doleful regions, might have represented the agricultural interest in the present Parliament, or at quarter sessions, or at meetings of the farmers' friends, or anywhere else.

But that is not the question now. It is conspired against; and we have given a few proofs of the conspiracy, as they shine out of various classes engaged in it. An indictment against the whole manufacturing interest need not be longer, surely, than the indictment in the case of the Crown against O'Connell and others. Mr. Cobden may be taken as its representative—as indeed he is, by one consent already. There may be no evidence; but that is not required. A judge and jury are all that is needed. And the Government know where to find _them_, or they gain experience to little purpose.

THREATENING LETTER TO THOMAS HOOD FROM AN ANCIENT GENTLEMAN

MR. HOOD. SIR,—The Constitution is going at last! You needn't laugh, Mr. Hood. I am aware that it has been going, two or three times before; perhaps four times; but it is on the move now, sir, and no mistake.

I beg to say, that I use those last expressions advisedly, sir, and not in the sense in which they are now used by Jackanapeses. There were no Jackanapeses when I was a boy, Mr. Hood. England was Old England when I was young. I little thought it would ever come to be Young England when I was old. But everything is going backward.

Ah! governments were governments, and judges were judges, in _my_ day, Mr. Hood. There was no nonsense then. Any of your seditious complainings, and we were ready with the military on the shortest notice. We should have charged Covent Garden Theatre, sir, on a Wednesday night: at the point of the bayonet. Then, the judges were full of dignity and firmness, and knew how to administer the law. There is only one judge who knows how to do his duty, now. He tried that revolutionary female the other day, who, though she was in full work (making shirts at three-halfpence a piece), had no pride in her country, but treasonably took it in her head, in the distraction of having been robbed of her easy earnings, to attempt to drown herself and her young child; and the glorious man went out of his way, sir—out of his way—to call her up for instant sentence of Death; and to tell her she had no hope of mercy in this world—as you may see yourself if you look in the papers of Wednesday the 17th of April. He won't be supported, sir, I know he won't; but it is worth remembering that his words were carried into every manufacturing town of this kingdom, and read aloud to crowds in every political parlour, beer-shop, news-room, and secret or open place of assembly, frequented by the discontented working-men; and that no milk-and-water weakness on the part of the executive can ever blot them out. Great things like that, are caught up, and stored up, in these times, and are not forgotten, Mr. Hood. The public at large (especially those who wish for peace and conciliation) are universally obliged to him. If it is reserved for any man to set the Thames on fire, it is reserved for him; and indeed I am told he very nearly did it, once.

But even he won’t save the constitution, sir: it is mauled beyond the power of preservation. Do you know in what foul weather it will be sacrificed and shipwrecked, Mr. Hood? Do you know on what rock it will strike, sir? You don’t, I am certain; for nobody does know as yet but myself. I will tell you.

The constitution will go down, sir (nautically speaking), in the degeneration of the human species in England, and its reduction into a mingled race of savages and pigmies.

That is my proposition. That is my prediction. That is the event of which I give you warning. I am now going to prove it, sir.

You are a literary man, Mr. Hood, and have written, I am told, some things worth reading. I say I am told, because I never read what is written in these days. You’ll excuse me; but my principle is, that no man ought to know anything about his own time, except that it is the worst time that ever was, or is ever likely to be. That is the only way, sir, to be truly wise and happy.

In your station, as a literary man, Mr. Hood, you are frequently at the Court of Her Gracious Majesty the Queen. God bless her! You have reason to know that the three great keys to the royal palace (after rank and politics) are Science, Literature, Art. I don’t approve of this myself. I think it ungenteel and barbarous, and quite un-English; the custom having been a foreign one, ever since the reigns of the uncivilised sultans in the Arabian Nights, who always called the wise men of their time about them. But so it is. And when you don’t dine at the royal table, there is always a knife and fork for you at the equerries’ table: where, I understand, all gifted men are made particularly welcome.

But all men can’t be gifted, Mr. Hood. Neither scientific, literary, nor artistical powers are any more to be inherited than the property arising from scientific, literary, or artistic productions, which the law, with a beautiful imitation of nature, declines to protect in the second generation. Very good, sir. Then, people are naturally very prone to cast about in their minds for other means of getting at Court Favour; and, watching the signs of the times, to hew out for themselves, or their descendants, the likeliest roads to that distinguished goal.

Mr. Hood, it is pretty clear, from recent records in the Court Circular, that if a father wish to train up his son in the way he should go, to go to Court: and cannot indenture him to be a scientific man, an author, or an artist, three courses are open to him. He must endeavour by artificial means to make him a dwarf, a wild man, or a Boy Jones.

Now, sir, this is the shoal and quicksand on which the constitution will go to pieces.

I have made inquiry, Mr. Hood, and find that in my neighbourhood two families and a fraction out of every four, in the lower and middle classes of society, are studying and practising all conceivable arts to keep their infant children down. Understand me. I do not mean down in their numbers, or down in their precocity, but down in their growth, sir. A destructive and subduing drink, compounded of gin and

milk in equal quantities, such as is given to puppies to retard their growth: not something short, but something shortening: is administered to these young creatures many times a day. An unnatural and artificial thirst is first awakened in these infants by meals of salt beef, bacon, anchovies, sardines, red herrings, shrimps, olives, pea-soup, and that description of diet; and when they screech for drink, in accents that might melt a heart of stone, which they do constantly (I allude to screeching, not to melting), this liquid is introduced into their too confiding stomachs. At such an early age, and to so great an extent, is this custom of provoking thirst, then quenching it with a stunting drink, observed, that brine pap has already superseded the use of tops-and-bottoms; and wet-nurses, previously free from any kind of reproach, have been seen to stagger in the streets: owing, sir, to the quantity of gin introduced into their systems, with a view to its gradual and natural conversion into the fluid I have already mentioned.

Upon the best calculation I can make, this is going on, as I have said, in the proportion of about two families and a fraction in four. In one more family and a fraction out of the same number, efforts are being made to reduce the children to a state of nature; and to inculcate, at a tender age, the love of raw flesh, train oil, new rum, and the acquisition of scalps. Wild and outlandish dances are also in vogue (you will have observed the prevailing rage for the Polka); and savage cries and whoops are much indulged in (as you may discover, if you doubt it, in the House of Commons any night). Nay, some persons, Mr. Hood; and persons of some figure and distinction too; have already succeeded in breeding wild sons; who have been publicly shown in the Courts of Bankruptcy, and in police-offices, and in other commodious exhibition-rooms, with great effect, but who have not yet found favour at court; in consequence, as I infer, of the impression made by Mr. Rankin’s wild men being too fresh and recent, to say nothing of Mr. Rankin’s wild men being foreigners.

I need not refer you, sir, to the late instance of the Ojibbeway Bride. But I am credibly informed, that she is on the eve of retiring into a savage fastness, where she may bring forth and educate a wild family, who shall in course of time, by the dexterous use of the popularity they are certain to acquire at Windsor and St. James’s, divide with dwarfs the principal offices of state, of patronage, and power, in the United Kingdom.

Consider the deplorable consequences, Mr. Hood, which must result from these proceedings, and the encouragement they receive in the highest quarters.

The dwarf being the favourite, sir, it is certain that the public mind will run in a great and eminent degree upon the production of dwarfs. Perhaps the failures only will be brought up, wild. The imagination goes a long way in these cases; and all that the imagination _can_ do, will be done, and is doing. You may convince yourself of this, by observing the condition of those ladies who take particular notice of General Tom Thumb at the Egyptian Hall, during his hours of performance.

The rapid increase of dwarfs, will be first felt in her Majesty’s recruiting department. The standard will, of necessity, be lowered; the dwarfs will grow smaller and smaller; the vulgar expression “a man of his inches” will become a figure of fact,

instead of a figure of speech; crack regiments, household-troops especially, will pick the smallest men from all parts of the country; and in the two little porticoes at the Horse Guards, two Tom Thumbs will be daily seen, doing duty, mounted on a pair of Shetland ponies. Each of them will be relieved (as Tom Thumb is at this moment, in the intervals of his performance) by a wild man; and a British Grenadier will either go into a quart pot, or be an Old Boy, or Blue Gull, or Flying Bull, or some other savage chief of that nature.

I will not expatiate upon the number of dwarfs who will be found representing Grecian statues in all parts of the metropolis; because I am inclined to think that this will be a change for the better; and that the engagement of two or three in Trafalgar Square will tend to the improvement of the public taste.

The various genteel employments at Court being held by dwarfs, sir, it will be necessary to alter, in some respects, the present regulations. It is quite clear that not even General Tom Thumb himself could preserve a becoming dignity on state occasions, if required to walk about with a scaffolding-pole under his arm; therefore the gold and silver sticks at present used, must be cut down into skewers of those precious metals; a twig of the black rod will be quite as much as can be conveniently preserved; the coral and bells of his Royal Highness the Prince of Wales, will be used in lieu of the mace at present in existence; and that bauble (as Oliver Cromwell called it, Mr. Hood), its value being first calculated by Mr. Finlayson, the government actuary, will be placed to the credit of the National Debt.

All this, sir, will be the death of the constitution. But this is not all. The constitution dies hard, perhaps; but there is enough disease impending, Mr. Hood, to kill it three times over.

Wild men will get into the House of Commons. Imagine that, sir! Imagine Strong Wind in the House of Commons! It is not an easy matter to get through a debate now; but I say, imagine Strong Wind, speaking for the benefit of his constituents, upon the floor of the House of Commons! or imagine (which is pregnant with more awful consequences still) the ministry having an interpreter in the House of Commons, to tell the country, in English, what it really means!

Why, sir, that in itself would be blowing the constitution out of the mortar in St. James’s Park, and leaving nothing of it to be seen but smoke.

But this, I repeat it, is the state of things to which we are fast tending, Mr. Hood; and I enclose my card for your private eye, that you may be quite certain of it. What the condition of this country will be, when its standing army is composed of dwarfs, with here and there a wild man to throw its ranks into confusion, like the elephants employed in war in former times, I leave you to imagine, sir. It may be objected by some hopeful jackanapeses, that the number of impressments in the navy, consequent upon the seizure of the Boy-Joneses, or remaining portion of the population ambitious of Court Favour, will be in itself sufficient to defend our Island from foreign invasion. But I tell those jackanapeses, sir, that while I admit the wisdom of the Boy Jones precedent, of kidnapping such youths after the expiration of their several terms of imprisonment as vagabonds; hurrying them on board ship; and

packing them off to sea again whenever they venture to take the air on shore; I deny the justice of the inference; inasmuch as it appears to me, that the inquiring minds of those young outlaws must naturally lead to their being hanged by the enemy as spies, early in their career; and before they shall have been rated on the books of our fleet as able seamen.

Such, Mr. Hood, sir, is the prospect before us! And unless you, and some of your friends who have influence at Court, can get up a giant as a forlorn hope, it is all over with this ill-fated land.

In reference to your own affairs, sir, you will take whatever course may seem to you most prudent and advisable after this warning. It is not a warning to be slighted: that I happen to know. I am informed by the gentleman who favours this, that you have recently been making some changes and improvements in your Magazine, and are, in point of fact, starting afresh. If I be well informed, and this be really so, rely upon it that you cannot start too small, sir. Come down to the duodecimo size instantly, Mr. Hood. Take time by the forelock; and, reducing the stature of your Magazine every month, bring it at last to the dimensions of the little almanack no longer issued, I regret to say, by the ingenious Mr. Schloss: which was invisible to the naked eye until examined through a little eye-glass.

You project, I am told, the publication of a new novel, by yourself, in the pages of your Magazine. A word in your ear. I am not a young man, sir, and have had some experience. Don’t put your own name on the title-page; it would be suicide and madness. Treat with General Tom Thumb, Mr. Hood, for the use of his name on any terms. If the gallant general should decline to treat with you, get Mr. Barnum’s name, which is the next best in the market. And when, through this politic course, you shall have received, in presents, a richly jewelled set of tablets from Buckingham Palace, and a gold watch and appendages from Marlborough House; and when those valuable trinkets shall be left under a glass case at your publisher’s for inspection by your friends and the public in general;—then, sir, you will do me the justice of remembering this communication.

It is unnecessary for me to add, after what I have observed in the course of this letter, that I am not,—sir, ever your

CONSTANT READER.

TUESDAY, 23_rd_ _April_ 1844.

_P.S._—Impress it upon your contributors that they cannot be too short; and that if not dwarfish, they must be wild—or at all events not tame.

CRIME AND EDUCATION

I OFFER no apology for entreating the attention of the readers of _The Daily News_ to an effort which has been making for some three years and a half, and which is making now, to introduce among the most miserable and neglected outcasts in London, some knowledge of the commonest principles of morality and religion; to commence their recognition as immortal human creatures, before the Gaol Chaplain becomes their

only schoolmaster; to suggest to Society that its duty to this wretched throng, foredoomed to crime and punishment, rightfully begins at some distance from the police office; and that the careless maintenance from year to year, in this, the capital city of the world, of a vast hopeless nursery of ignorance, misery and vice; a breeding place for the hulks and jails: is horrible to contemplate.

This attempt is being made in certain of the most obscure and squalid parts of the Metropolis, where rooms are opened, at night, for the gratuitous instruction of all comers, children or adults, under the title of RAGGED SCHOOLS. The name implies the purpose. They who are too ragged, wretched, filthy, and forlorn, to enter any other place: who could gain admission into no charity school, and who would be driven from any church door; are invited to come in here, and find some people not depraved, willing to teach them something, and show them some sympathy, and stretch a hand out, which is not the iron hand of Law, for their correction.

Before I describe a visit of my own to a Ragged School, and urge the readers of this letter for God’s sake to visit one themselves, and think of it (which is my main object), let me say, that I know the prisons of London well; that I have visited the largest of them more times than I could count; and that the children in them are enough to break the heart and hope of any man. I have never taken a foreigner or a stranger of any kind to one of these establishments but I have seen him so moved at sight of the child offenders, and so affected by the contemplation of their utter renouncement and desolation outside the prison walls, that he has been as little able to disguise his emotion, as if some great grief had suddenly burst upon him. Mr. Chesterton and Lieutenant Tracey (than whom more intelligent and humane Governors of Prisons it would be hard, if not impossible, to find) know perfectly well that these children pass and repass through the prisons all their lives; that they are never taught; that the first distinctions between right and wrong are, from their cradles, perfectly confounded and perverted in their minds; that they come of untaught parents, and will give birth to another untaught generation; that in exact proportion to their natural abilities, is the extent and scope of their depravity; and that there is no escape or chance for them in any ordinary revolution of human affairs. Happily, there are schools in these prisons now. If any readers doubt how ignorant the children are, let them visit those schools and see them at their tasks, and hear how much they knew when they were sent there. If they would know the produce of this seed, let them see a class of men and boys together, at their books (as I have seen them in the House of Correction for this county of Middlesex), and mark how painfully the full grown felons toil at the very shape and form of letters; their ignorance being so confirmed and solid. The contrast of this labour in the men, with the less blunted quickness of the boys; the latent shame and sense of degradation struggling through their dull attempts at infant lessons; and the universal eagerness to learn, impress me, in this passing retrospect, more painfully than I can tell.

For the instruction, and as a first step in the reformation, of such unhappy beings, the Ragged Schools were founded. I was first attracted to the subject, and indeed was first made conscious of their existence, about two years ago, or more, by seeing an advertisement in the papers dated from West Street, Saffron Hill, stating “That a

room had been opened and supported in that wretched neighbourhood for upwards of twelve months, where religious instruction had been imparted to the poor", and explaining in a few words what was meant by Ragged Schools as a generic term, including, then, four or five similar places of instruction. I wrote to the masters of this particular school to make some further inquiries, and went myself soon afterwards.

It was a hot summer night; and the air of Field Lane and Saffron Hill was not improved by such weather, nor were the people in those streets very sober or honest company. Being unacquainted with the exact locality of the school, I was fain to make some inquiries about it. These were very jocosely received in general; but everybody knew where it was, and gave the right direction to it. The prevailing idea among the loungers (the greater part of them the very sweepings of the streets and station houses) seemed to be, that the teachers were quixotic, and the school upon the whole "a lark". But there was certainly a kind of rough respect for the intention, and (as I have said) nobody denied the school or its whereabouts, or refused assistance in directing to it.

It consisted at that time of either two or three—I forget which—miserable rooms, upstairs in a miserable house. In the best of these, the pupils in the female school were being taught to read and write; and though there were among the number, many wretched creatures steeped in degradation to the lips, they were tolerably quiet, and listened with apparent earnestness and patience to their instructors. The appearance of this room was sad and melancholy, of course—how could it be otherwise!—but, on the whole, encouraging.

The close, low chamber at the back, in which the boys were crowded, was so foul and stifling as to be, at first, almost insupportable. But its moral aspect was so far worse than its physical, that this was soon forgotten. Huddled together on a bench about the room, and shown out by some flaring candles stuck against the walls, were a crowd of boys, varying from mere infants to young men; sellers of fruit, herbs, lucifer-matches, flints; sleepers under the dry arches of bridges; young thieves and beggars—with nothing natural to youth about them: with nothing frank, ingenuous, or pleasant in their faces; low-browed, vicious, cunning, wicked; abandoned of all help but this; speeding downward to destruction; and UNUTTERABLY IGNORANT.

This, Reader, was one room as full as it could hold; but these were only grains in sample of a Multitude that are perpetually sifting through these schools; in sample of a Multitude who had within them once, and perhaps have now, the elements of men as good as you or I, and maybe infinitely better; in sample of a Multitude among whose doomed and sinful ranks (oh, think of this, and think of them!) the child of any man upon this earth, however lofty his degree, must, as by Destiny and Fate, be found, if, at its birth, it were consigned to such an infancy and nurture, as these fallen creatures had!

This was the Class I saw at the Ragged School. They could not be trusted with books; they could only be instructed orally; they were difficult of reduction to anything like attention, obedience, or decent behaviour; their benighted ignorance in reference to the Deity, or to any social duty (how could they guess at any social duty,

being so discarded by all social teachers but the gaoler and the hangman!) was terrible to see. Yet, even here, and among these, something had been done already. The Ragged School was of recent date and very poor; but he had inculcated some association with the name of the Almighty, which was not an oath, and had taught them to look forward in a hymn (they sang it) to another life, which would correct the miseries and woes of this.

The new exposition I found in this Ragged School, of the frightful neglect by the State of those whom it punishes so constantly, and whom it might, as easily and less expensively, instruct and save; together with the sight I had seen there, in the heart of London; haunted me, and finally impelled me to an endeavour to bring these Institutions under the notice of the Government; with some faint hope that the vastness of the question would supersede the Theology of the schools, and that the Bench of Bishops might adjust the latter question, after some small grant had been conceded. I made the attempt; and have heard no more of the subject from that hour.

The perusal of an advertisement in yesterday’s paper, announcing a lecture on the Ragged Schools last night, has led me into these remarks. I might easily have given them another form; but I address this letter to you, in the hope that some few readers in whom I have awakened an interest, as a writer of fiction, may be, by that means, attracted to the subject, who might otherwise, unintentionally, pass it over.

I have no desire to praise the system pursued in the Ragged Schools; which is necessarily very imperfect, if indeed there be one. So far as I have any means of judging of what is taught there, I should individually object to it, as not being sufficiently secular, and as presenting too many religious mysteries and difficulties, to minds not sufficiently prepared for their reception. But I should very imperfectly discharge in myself the duty I wish to urge and impress on others, if I allowed any such doubt of mine to interfere with my appreciation of the efforts of these teachers, or my true wish to promote them by any slight means in my power. Irritating topics, of all kinds, are equally far removed from my purpose and intention. But, I adjure those excellent persons who aid, munificently, in the building of New Churches, to think of these Ragged Schools; to reflect whether some portion of their rich endowments might not be spared for such a purpose; to contemplate, calmly, the necessity of beginning at the beginning; to consider for themselves where the Christian Religion most needs and most suggests immediate help and illustration; and not to decide on any theory or hearsay, but to go themselves into the Prisons and the Ragged Schools, and form their own conclusions. They will be shocked, pained, and repelled, by much that they learn there; but nothing they can learn will be one-thousandth part so shocking, painful, and repulsive, as the continuance for one year more of these things as they have been for too many years already.

Anticipating that some of the more prominent facts connected with the history of the Ragged Schools, may become known to the readers of _The Daily News_ through your account of the lecture in question, I abstain (though in possession of some such information) from pursuing the question further, at this time. But if I should see occasion, I will take leave to return to it.

CAPITAL PUNISHMENT

I WILL take for the subject of this letter, the effect of Capital Punishment on the commission of crime, or rather of murder; the only crime with one exception (and that a rare one) to which it is now applied. Its effect in preventing crime, I will reserve for another letter: and a few of the more striking illustrations of each aspect of the subject, for a concluding one.

The effect of Capital Punishment on the commission of Murder.

Some murders are committed in hot blood and furious rage; some, in deliberate revenge; some, in terrible despair; some (but not many) for mere gain; some, for the removal of an object dangerous to the murderer's peace or good name; some, to win a monstrous notoriety.

On murders committed in rage, in the despair of strong affection (as when a starving child is murdered by its parent) or for gain, I believe the punishment of death to have no effect in the least. In the two first cases, the impulse is a blind and wild one, infinitely beyond the reach of any reference to the punishment. In the last, there is little calculation beyond the absorbing greed of the money to be got. Courvoisier, for example, might have robbed his master with greater safety, and with fewer chances of detection, if he had not murdered him. But, his calculations going to the gain and not to the loss, he had no balance for the consequences of what he did. So, it would have been more safe and prudent in the woman who was hanged a few weeks since, for the murder in Westminster, to have simply robbed her old companion in an unguarded moment, as in her sleep. But, her calculation going to the gain of what she took to be a Bank note; and the poor old woman living between her and the gain; she murdered her.

On murders committed in deliberate revenge, or to remove a stumbling block in the murderer's path, or in an insatiate craving for notoriety, is there reason to suppose that the punishment of death has the direct effect of an incentive and an impulse?

A murder is committed in deliberate revenge. The murderer is at no trouble to prepare his train of circumstances, takes little or no pains to escape, is quite cool and collected, perfectly content to deliver himself up to the Police, makes no secret of his guilt, but boldly says, "I killed him. I'm glad of it. I meant to do it. I am ready to die." There was such a case the other day. There was such another case not long ago. There are such cases frequently. It is the commonest first exclamation on being seized. Now, what is this but a false arguing of the question, announcing a foregone conclusion, expressly leading to the crime, and inseparably arising out of the Punishment of Death? "I took his life. I give up mine to pay for it. Life for life; blood for blood. I have done the crime. I am ready with the atonement. I know all about it; it's a fair bargain between me and the law. Here am I to execute my part of it; and what more is to be said or done?" It is the very essence of the maintenance of this punishment for murder, that it _does_ set life against life. It is in the essence of a stupid, weak, or otherwise ill-regulated mind (of such a murderer's mind, in short), to recognise in this set off, a something that diminishes the base and coward character

of murder. “In a pitched battle, I, a common man, may kill my adversary, but he may kill me. In a duel, a gentleman may shoot his opponent through the head, but the opponent may shoot him too, and this makes it fair. Very well. I take this man’s life for a reason I have, or choose to think I have, and the law takes mine. The law says, and the clergyman says, there must be blood for blood and life for life. Here it is. I pay the penalty.”

A mind incapable, or confounded in its perceptions—and you must argue with reference to such a mind, or you could not have such a murder—may not only establish on these grounds an idea of strict justice and fair reparation, but a stubborn and dogged fortitude and foresight that satisfy it hugely. Whether the fact be really so, or not, is a question I would be content to rest, alone, on the number of cases of revengeful murder in which this is well known, without dispute, to have been the prevailing demeanour of the criminal: and in which such speeches and such absurd reasoning have been constantly uppermost with him. “Blood for blood”, and “life for life”, and such like balanced jingles, have passed current in people’s mouths, from legislators downwards, until they have been corrupted into “tit for tat”, and acted on.

Next, come the murders done, to sweep out of the way a dreaded or detested object. At the bottom of this class of crimes, there is a slow, corroding, growing hate. Violent quarrels are commonly found to have taken place between the murdered person and the murderer: usually of opposite sexes. There are witnesses to old scenes of reproach and recrimination, in which they were the actors; and the murderer has been heard to say, in this or that coarse phrase, “that he wouldn’t mind killing her, though he should be hanged for it”—in these cases, the commonest avowal.

It seems to me, that in this well-known scrap of evidence, there is a deeper meaning than is usually attached to it. I do not know, but it may be—I have a strong suspicion that it is—a clue to the slow growth of the crime, and its gradual development in the mind. More than this; a clue to the mental connection of the deed, with the punishment to which the doer of that deed is liable, until the two, conjoined, give birth to monstrous and misshapen Murder.

The idea of murder, in such a case, like that of self-destruction in the great majority of instances, is not a new one. It may have presented itself to the disturbed mind in a dim shape and afar off; but it has been there. After a quarrel, or with some strong sense upon him of irritation or discomfort arising out of the continuance of this life in his path, the man has brooded over the unformed desire to take it. “Though he should be hanged for it.” With the entrance of the Punishment into his thoughts, the shadow of the fatal beam begins to attend—not on himself, but on the object of his hate. At every new temptation, it is there, stronger and blacker yet, trying to terrify him. When she defies or threatens him, the scaffold seems to be her strength and “vantage ground”. Let her not be too sure of that; “though he should be hanged for it”.

Thus, he begins to raise up, in the contemplation of this death by hanging, a new and violent enemy to brave. The prospect of a slow and solitary expiation would have no congeniality with his wicked thoughts, but this throttling and strangling has.

There is always before him, an ugly, bloody, scarecrow phantom, that champions her, as it were, and yet shows him, in a ghastly way, the example of murder. Is she very weak, or very trustful in him, or infirm, or old? It gives a hideous courage to what would be mere slaughter otherwise; for there it is, a presence always about her, darkly menacing him with that penalty whose murky secret has a fascination for all secret and unwholesome thoughts. And when he struggles with his victim at the last, “though he should be hanged for it”, it is a merciless wrestle, not with one weak life only, but with that ever-haunting, ever-beckoning shadow of the gallows, too; and with a fierce defiance to it, after their long survey of each other, to come on and do its worst.

Present this black idea of violence to a bad mind contemplating violence; hold up before a man remotely compassing the death of another person, the spectacle of his own ghastly and untimely death by man’s hands; and out of the depths of his own nature you shall assuredly raise up that which lures and tempts him on. The laws which regulate those mysteries have not been studied or cared for, by the maintainers of this law; but they are paramount and will always assert their power.

Out of one hundred and sixty-seven persons under sentence of Death in England, questioned at different times, in the course of years, by an English clergyman in the performance of his duty, there were only three who had not been spectators of executions.

We come, now, to the consideration of those murders which are committed, or attempted, with no other object than the attainment of an infamous notoriety. That this class of crimes has its origin in the Punishment of Death, we cannot question; because (as we have already seen, and shall presently establish by another proof) great notoriety and interest attach, and are generally understood to attach, only to those criminals who are in danger of being executed.

One of the most remarkable instances of murder originating in mad self-conceit; and of the murderer’s part in the repulsive drama, in which the law appears at such great disadvantage to itself and to society, being acted almost to the last with a self-complacency that would be horribly ludicrous if it were not utterly revolting; is presented in the case of Hocker.

Here is an insolent, flippant, dissolute youth: aping the man of intrigue and levity: over-dressed, over-confident, inordinately vain of his personal appearance: distinguished as to his hair, cane, snuff-box, and singing-voice: and unhappily the son of a working shoemaker. Bent on loftier flights than such a poor house-swallow as a teacher in a Sunday-school can take; and having no truth, industry, perseverance, or other dull work-a-day quality, to plume his wings withal; he casts about him, in his jaunty way, for some mode of distinguishing himself—some means of getting that head of hair into the print-shops; of having something like justice done to his singing-voice and fine intellect; of making the life and adventures of Thomas Hocker remarkable; and of getting up some excitement in connection with that slighted piece of biography. The Stage? No. Not feasible. There has always been a conspiracy against the Thomas Hockers, in that kind of effort. It has been the same with

Authorship in prose and poetry. Is there nothing else? A Murder, now, would make a noise in the papers! There is the gallows to be sure; but without that, it would be nothing. Short of that, it wouldn't be fame. Well! We must all die at one time or other; and to die game, and have it in print, is just the thing for a man of spirit. They always die game at the Minor Theatres and the Saloons, and the people like it very much. Thurtell, too, died very game, and made a capital speech when he was tried. There's all about it in a book at the cigar-shop now. Come, Tom, get your name up! Let it be a dashing murder that shall keep the wood-engravers at it for the next two months. You are the boy to go through with it, and interest the town!

The miserable wretch, inflated by this lunatic conceit, arranges his whole plan for publication and effect. It is quite an epitome of his experience of the domestic melodrama or penny novel. There is the Victim Friend; the mysterious letter of the injured Female to the Victim Friend; the romantic spot for the Death-Struggle by night; the unexpected appearance of Thomas Hocker to the Policeman; the parlour of the Public House, with Thomas Hocker reading the paper to a strange gentleman; the Family Apartment, with a song by Thomas Hocker; the Inquest Room, with Thomas Hocker boldly looking on; the interior of the Marylebone Theatre, with Thomas Hocker taken into custody; the Police Office with Thomas Hocker "affable" to the spectators; the interior of Newgate, with Thomas Hocker preparing his defence; the Court, where Thomas Hocker, with his dancing-master airs, is put upon his trial, and complimented by the Judge; the Prosecution, the Defence, the Verdict, the Black Cap, the Sentence—each of them a line in any Playbill, and how bold a line in Thomas Hocker's life!

It is worthy of remark, that the nearer he approaches to the gallows—the great last scene to which the whole of these effects have been working up—the more the overweening conceit of the poor wretch shows itself; the more he feels that he is the hero of the hour; the more audaciously and recklessly he lies, in supporting the character. In public—at the condemned sermon—he deports himself as becomes the man whose autographs are precious, whose portraits are innumerable; in memory of whom, whole fences and gates have been borne away, in splinters, from the scene of murder. He knows that the eyes of Europe are upon him; but he is not proud—only graceful. He bows, like the first gentleman in Europe, to the turnkey who brings him a glass of water; and composes his clothes and hassock as carefully, as good Madame Blaize could do. In private—within the walls of the condemned cell—every word and action of his waning life, is a lie. His whole time is divided between telling lies and writing them. If he ever have another thought, it is for his genteel appearance on the scaffold; as when he begs the barber "not to cut his hair too short, or they won't know him when he comes out". His last proceeding but one is to write two romantic love letters to women who have no existence. His last proceeding of all (but less characteristic, though the only true one) is to swoon away, miserably, in the arms of the attendants, and be hanged up like a craven dog.

Is not such a history, from first to last, a most revolting and disgraceful one; and can the student of it bring himself to believe that it ever could have place in any record of facts, or that the miserable chief-actor in it could have ever had a motive for

his arrogant wickedness, but for the comment and the explanation which the Punishment of Death supplies!

It is not a solitary case, nor is it a prodigy, but a mere specimen of a class. The case of Oxford, who fired at Her Majesty in the Park, will be found, on examination, to resemble it very nearly, in the essential feature. There is no proved pretence whatever for regarding him as mad; other than that he was like this malefactor, brimful of conceit, and a desire to become, even at the cost of the gallows (the only cost within his reach) the talk of the town. He had less invention than Hocker, and perhaps was not so deliberately bad; but his attempt was a branch of the same tree, and it has its root in the ground where the scaffold is erected.

Oxford had his imitators. Let it never be forgotten in the consideration of this part of the subject, how they were stopped. So long as attempts invested them with the distinction of being in danger of death at the hangman's hands, so long did they spring up. When the penalty of death was removed, and a mean and humiliating punishment substituted in its place, the race was at an end, and ceased to be.

II

We come, now, to consider the effect of Capital Punishment in the prevention of crime.

Does it prevent crime in those who attend executions?

There never is (and there never was) an execution at the Old Bailey in London, but the spectators include two large classes of thieves—one class who go there as they would go to a dog-fight, or any other brutal sport, for the attraction and excitement of the spectacle; the other who make it a dry matter of business, and mix with the crowd solely to pick pockets. Add to these, the dissolute, the drunken, the most idle, profligate, and abandoned of both sexes—some moody ill-conditioned minds, drawn thither by a fearful interest—and some impelled by curiosity; of whom the greater part are of an age and temperament rendering the gratification of that curiosity highly dangerous to themselves and to society—and the great elements of the concourse are stated.

Nor is this assemblage peculiar to London. It is the same in country towns, allowing for the different statistics of the population. It is the same in America. I was present at an execution in Rome, for a most treacherous and wicked murder, and not only saw the same kind of assemblage there, but, wearing what is called a shooting-coat, with a great many pockets in it, felt innumerable hands busy in every one of them, close to the scaffold.

I have already mentioned that out of one hundred and sixty-seven convicts under sentence of death, questioned at different times in the performance of his duty by an English clergyman, there were only three who had not been spectators of executions. Mr. Wakefield, in his _Facts relating to the Punishment of Death_, goes into the working, as it were, of this sum. His testimony is extremely valuable, because it is the evidence of an educated and observing man, who, before having personal knowledge

of the subject and of Newgate, was quite satisfied that the Punishment of Death should continue, but who, when he gained that experience, exerted himself to the utmost for its abolition, even at the pain of constant public reference in his own person to his own imprisonment. “It cannot be egotism”, he reasonably observes, “that prompts a man to speak of himself in connection with Newgate.”

“Whoever will undergo the pain,” says Mr. Wakefield, “of witnessing the public destruction of a fellow-creature’s life, in London, must be perfectly satisfied that in the great mass of spectators, the effect of the punishment is to excite sympathy for the criminal and hatred of the law. . . . I am inclined to believe that the criminals of London, spoken of as a class and allowing for exceptions, take the same sort of delight in witnessing executions, as the sportsman and soldier find in the dangers of hunting and war. . . I am confident that few Old Bailey Sessions pass without the trial of a boy, whose first thought of crime occurred whilst he was witnessing an execution. . . . And one grown man, of great mental powers and superior education, who was acquitted of a charge of forgery, assured me that the first idea of committing a forgery occurred to him at the moment when he was accidentally witnessing the execution of Fauntleroy. To which it may be added, that Fauntleroy is said to have made precisely the same declaration in reference to the origin of his own criminality.”

But one convict “who was within an ace of being hanged”, among the many with whom Mr. Wakefield conversed, seems to me to have unconsciously put a question which the advocates of Capital Punishment would find it very difficult indeed to answer. “Have you often seen an execution?” asked Mr. Wakefield. “Yes, often.” “Did it not frighten you?” “No. _Why should it_?”

It is very easy and very natural to turn from this ruffian, shocked by the hardened retort; but answer his question, why should it? Should he be frightened by the sight of a dead man? We are born to die, he says, with a careless triumph. We are not born to the treadmill, or to servitude and slavery, or to banishment; but the executioner has done no more for that criminal than nature may do tomorrow for the judge, and will certainly do, in her own good time, for judge and jury, counsel and witnesses, turnkeys, hangman, and all. Should he be frightened by the manner of the death? It is horrible, truly, so horrible, that the law, afraid or ashamed of its own deed, hides the face of the struggling wretch it slays; but does this fact naturally awaken in such a man, terror—or defiance? Let the same man speak. “What did you think then?” asked Mr. Wakefield. “Think? Why, I thought it was a—shame.”

Disgust and indignation, or recklessness and indifference, or a morbid tendency to brood over the sight until temptation is engendered by it, are the inevitable consequences of the spectacle, according to the difference of habit and disposition in those who behold it. Why should it frighten or deter? We know it does not. We know it from the police reports, and from the testimony of those who have experience of prisons and prisoners, and we may know it, on the occasion of an execution, by the evidence of our own senses; if we will be at the misery of using them for such a purpose. But why should it? Who would send his child or his apprentice, or what tutor would send his scholars, or what master would send his servants, to be deterred from

vice by the spectacle of an execution? If it be an example to criminals, and to criminals only, why are not the prisoners in Newgate brought out to see the show before the debtors' door? Why, while they are made parties to the condemned sermon, are they rigidly excluded from the improving postscript of the gallows? Because an execution is well known to be an utterly useless, barbarous, and brutalising sight, and because the sympathy of all beholders, who have any sympathy at all, is certain to be always with the criminal, and never with the law.

I learn from the newspaper accounts of every execution, how Mr. So-and-so, and Mr. Somebody else, and Mr. So-forth shook hands with the culprit, but I never find them shaking hands with the hangman. All kinds of attention and consideration are lavished on the one; but the other is universally avoided, like a pestilence. I want to know why so much sympathy is expended on the man who kills another in the vehemence of his own bad passions, and why the man who kills him in the name of the law is shunned and fled from? Is it because the murderer is going to die? Then by no means put him to death. Is it because the hangman executes a law, which, when they once come near it face to face, all men instinctively revolt from? Then by all means change it. There is, there can be, no prevention in such a law.

It may be urged that Public Executions are not intended for the benefit of those dregs of society who habitually attend them. This is an absurdity, to which the obvious answer is, So much the worse. If they be not considered with reference to that class of persons, comprehending a great host of criminals in various stages of development, they ought to be, and must be. To lose sight of that consideration is to be irrational, unjust, and cruel. All other punishments are especially devised, with a reference to the rooted habits, propensities, and antipathies of criminals. And shall it be said, out of Bedlam, that this last punishment of all is alone to be made an exception from the rule, even where it is shown to be a means of propagating vice and crime?

But there may be people who do not attend executions, to whom the general fame and rumour of such scenes is an example, and a means of deterring from crime.

Who are they? We have seen that around Capital Punishment there lingers a fascination, urging weak and bad people towards it, and imparting an interest to details connected with it, and with malefactors awaiting it or suffering it, which even good and well-disposed people cannot withstand. We know that last-dying speeches and Newgate calendars are the favourite literature of very low intellects. The gallows is not appealed to as an example in the instruction of youth (unless they are training for it); nor are there condensed accounts of celebrated executions for the use of national schools. There is a story in an old spelling-book of a certain Don't Care who was hanged at last, but it is not understood to have had any remarkable effect on crimes or executions in the generation to which it belonged, and with which it has passed away. Hogarth's idle apprentice is hanged; but the whole scene—with the unmistakable stout lady, drunk and pious, in the cast; the quarrelling, blasphemy, lewdness, and uproar; Tiddy Doll vending his gingerbread, and the boys picking his pocket—is a bitter satire on the great example; as efficient then, as now.

Is it efficient to prevent crime? The parliamentary returns demonstrate that it is not. I was engaged in making some extracts from these documents, when I found them so well abstracted in one of the papers published by the committee on this subject established at Aylesbury last year, by the humane exertions of Lord Nugent, that I am glad to quote the general results from its pages:

“In 1843 a return was laid on the table of the House of the commitments and executions for murder in England and Wales during the thirty years ending with December 1842, divided into five periods of six years each. It shows that in the last six years, from 1836 to 1842, during which there were only 50 executions, the commitments for murder were fewer by 61 than in the six years preceding with 74 executions; fewer by 63 than in the six years ending 1830 with 75 executions; fewer by 56 than in the six years ending 1824 with 94 executions; and fewer by 93 than in the six years ending 1818 when there was no less a number of executions than 122. But it may be said, perhaps, that in the inference we draw from this return, we are substituting cause for effect, and that in each successive cycle, the number of murders decreased in consequence of the example of public executions in the cycle immediately preceding, and that it was for that reason there were fewer commitments. This might be said with some colour of truth, if the example had been taken from two successive cycles _only_. But when the comparative examples adduced are of no less than _five_ successive cycles, and the result gradually and constantly progressive in the same direction, the relation of facts to each other is determined beyond all ground for dispute, namely, that the number of these crimes has diminished in consequence of the diminution of the number of executions. More especially when it is also remembered that it was _immediately after_ the first of these cycles of five years, when there had been the greatest number of executions and the greatest number of murders, that the greatest number of persons were suddenly cast loose upon the country, without employ, by the reduction of the Army and Navy; that then came periods of great distress and great disturbance in the agricultural and manufacturing districts; and _above all_, that it was during the subsequent cycles that the most important mitigations were effected in the law, and that the Punishment of Death was taken away not only for crimes of stealth, such as cattle and horse stealing and forgery, of which crimes corresponding statistics show likewise a corresponding decrease, but for the crimes of violence too, _tending to murder_, such as are many of the incendiary offences, and such as are highway robbery and burglary. But another return, laid before the House at the same time, bears upon our argument, if possible, still more conclusively. In table 11 we have _only_ the years which have occurred since 1810, in which _all_ persons convicted of murder suffered death; and, compared with these an _equal_ number of years in which the _smallest_ proportion of persons convicted were executed. In the first case there were 66 persons convicted, all of whom underwent the penalty of death; in the second 83 were convicted, of whom 31 only were executed. Now see how these two very different methods of dealing with the crime of murder affected the commission of it _in the years immediately following_. The number of commitments for murder, in the four years immediately following those in which all persons convicted were executed, was 270.

“In the four years immediately following those in which little more than one-third of the persons convicted were executed, there were but 222, being 48 less. If we compare the commitments in the following years with those in the first years, we shall find that, immediately after the examples of unsparing execution, the crime _increased nearly 13 per cent._, and that after commutation was the practice and capital punishment the exception, it _decreased 17 per cent._

“In the same parliamentary return is an account of the commitments and executions in London and Middlesex, _spread over a space of_ 32 _years_, ending in 1842, divided into two cycles of 16 years each. In the first of these, 34 persons were _convicted_ of murder, _all of whom were executed_. In the second, 27 were _convicted_, and only 17 executed. The _commitments_ for murder during the latter long period, with 17 executions, were _more than one half_ fewer than they had been in the former _long_ period with _exactly double the number of executions_. This appears to us to be as conclusive upon our argument as any statistical illustration can be upon any argument professing to place successive events in the relation of cause and effect to each other. How justly then is it said in that able and useful periodical work, now in the course of publication at Glasgow, under the name of the _Magazine of Popular Information on Capital and Secondary Punishment_, ‘the greater the number of executions, the greater the number of murders; the smaller the number of executions, the smaller the number of murders. The lives of her Majesty’s subjects are less safe with a hundred executions a year than with fifty; less safe with fifty than with twenty-five.’”

Similar results have followed from rendering public executions more and more infrequent, in Tuscany, in Prussia, in France, in Belgium. Wherever capital punishments are diminished in their number, there, crimes diminish in their number too.

But the very same advocates of the punishment of Death who contend, in the teeth of all facts and figures, that it does prevent crime, contend in the same breath against its abolition because it does not! “There are so many bad murders,” say they, “and they follow in such quick succession, that the Punishment must not be repealed.” Why, is not this a reason, among others, _for_ repealing it? Does it not go to show that it is ineffective as an example; that it fails to prevent crime; and that it is wholly inefficient to stay that imitation, or contagion, call it what you please, which brings one murder on the heels of another?

One forgery came crowding on another’s heels in the same way, when the same punishment attached to that crime. Since it has been removed, forgeries have diminished in a most remarkable degree. Yet within five and thirty years, Lord Eldon, with tearful solemnity, imagined in the House of Lords as a possibility for their Lordships to shudder at, that the time might come when some visionary and morbid person might even propose the abolition of the punishment of Death for forgery. And when it was proposed, Lords Lyndhurst, Wynford, Tenterden, and Eldon—all Law Lords—opposed it.

The same Lord Tenterden manfully said, on another occasion and another question, that he was glad the subject of the amendment of the laws had been taken up by Mr. Peel, “who had not been bred to the law; for those who were, were rendered dull, by habit, to many of its defects!” I would respectfully submit, in extension of this text, that a criminal judge is an excellent witness against the Punishment of Death, but a bad witness in its favour; and I will reserve this point for a few remarks in the next, concluding, Letter.

III

The last English Judge, I believe, who gave expression to a public and judicial opinion in favour of the punishment of Death, is Mr. Justice Coleridge, who, in charging the Grand Jury at Hertford last year, took occasion to lament the presence of serious crimes in the calendar, and to say that he feared that they were referable to the comparative infrequency of Capital Punishment.

It is not incompatible with the utmost deference and respect for an authority so eminent, to say that, in this, Mr. Justice Coleridge was not supported by facts, but quite the reverse. He went out of his way to found a general assumption on certain very limited and partial grounds, and even on those grounds was wrong. For among the few crimes which he instanced, murder stood prominently forth. Now persons found guilty of murder are more certainly and unsparingly hanged at this time, as the Parliamentary Returns demonstrate, than such criminals ever were. So how can the decline of public executions affect that class of crimes? As to persons committing murder, and yet not found guilty of it by juries, they escape solely because there are many public executions—not because there are none or few.

But when I submit that a criminal judge is an excellent witness against Capital Punishment, but a bad witness in its favour, I do so on more broad and general grounds than apply to this error in fact and deduction (so I presume to consider it) on the part of the distinguished judge in question. And they are grounds which do not apply offensively to judges, as a class; than whom there are no authorities in England so deserving of general respect and confidence, or so possessed of it; but which apply alike to all men in their several degrees and pursuits.

It is certain that men contract a general liking for those things which they have studied at great cost of time and intellect, and their proficiency in which has led to their becoming distinguished and successful. It is certain that out of this feeling arises, not only that passive blindness to their defects of which the example given by my Lord Tenterden was quoted in the last letter, but an active disposition to advocate and defend them. If it were otherwise; if it were not for this spirit of interest and partisanship; no single pursuit could have that attraction for its votaries which most pursuits in course of time establish. Thus legal authorities are usually jealous of innovations on legal principles. Thus it is described of the lawyer in the Introductory Discourse to the Description of Utopia, that he said of a proposal against Capital Punishment, “‘this could never be so established in England but that it must needs bring the weal-public into great jeopardy and hazard’, and as he was thus saying, he

shaked his head, and made a wry mouth, and so he held his peace". Thus the Recorder of London, in 1811, objected to "the capital part being taken off" from the offence of picking pockets. Thus the Lord Chancellor, in 1813, objected to the removal of the penalty of death from the offence of stealing to the amount of five shillings from a shop. Thus, Lord Ellenborough, in 1820, anticipated the worst effects from there being no punishment of death for stealing five shillings worth of wet linen from a bleaching ground. Thus the Solicitor General, in 1830, advocated the punishment of death for forgery, and "the satisfaction of thinking" in the teeth of mountains of evidence from bankers and other injured parties (one thousand bankers alone!) "that he was deterring persons from the commission of crime, by the severity of the law". Thus, Mr. Justice Coleridge delivered his charge at Hertford in 1845. Thus there were in the criminal code of England, in 1790, one hundred and sixty crimes punishable with death. Thus the lawyer has said, again and again, in his generation, that any change in such a state of things "must needs bring the weal-public into jeopardy and hazard". And thus he has, all through the dismal history, "shaked his head, and made a wry mouth, and held his peace". Except—a glorious exception!—when such lawyers as Bacon, More, Blackstone, Romilly, and—let us ever gratefully remember—in later times Mr. Basil Montagu, have striven, each in his day, within the utmost limits of the endurance of the mistaken feeling of the people or the legislature of the time, to champion and maintain the truth.

There is another and a stronger reason still, why a criminal judge is a bad witness in favour of the punishment of Death. He is a chief actor in the terrible drama of a trial, where the life or death of a fellow creature is at issue. No one who has seen such a trial can fail to know, or can ever forget, its intense interest. I care not how painful this interest is to the good, wise judge upon the bench. I admit its painful nature, and the judge's goodness and wisdom to the fullest extent—but I submit that his prominent share in the excitement of such a trial, and the dread mystery involved, has a tendency to bewilder and confuse the judge upon the general subject of that penalty. I know the solemn pause before the verdict, the bush and stifling of the fever in the court, the solitary figure brought back to the bar, and standing there, observed of all the outstretched heads and gleaming eyes, to be next minute stricken dead as one may say, among them. I know the thrill that goes round when the black cap is put on, and how there will be shrieks among the women, and a taking out of some one in a swoon; and, when the judge's faltering voice delivers sentence, how awfully the prisoner and he confront each other; two mere men, destined one day, however far removed from one another at this time, to stand alike as suppliants at the bar of God. I know all this, I can imagine what the office of the judge costs in this execution of it; but I say that in these strong sensations he is lost, and is unable to abstract the penalty as a preventive or example, from an experience of it, and from associations surrounding it, which are and can be, only his, and his alone.

Not to contend that there is no amount of wig or ermine that can change the nature of the man inside; not to say that the nature of a judge may be, like the dyer's hand, subdued to what it works in, and may become too used to this punishment of death to consider it quite dispassionately; not to say that it may possibly be inconsistent to have, deciding as calm authorities in favour of death, judges who have

been constantly sentencing to death;—I contend that for the reasons I have stated alone, a judge, and especially a criminal judge, is a bad witness for the punishment but an excellent witness against it, inasmuch as in the latter case his conviction of its inutility has been so strong and paramount as utterly to beat down and conquer these adverse incidents. I have no scruple in stating this position, because, for anything I know, the majority of excellent judges now on the bench may have overcome them, and may be opposed to the punishment of Death under any circumstances.

I mentioned that I would devote a portion of this letter to a few prominent illustrations of each head of objection to the punishment of Death. Those on record are so very numerous that selection is extremely difficult; but in reference to the possibility of mistake, and the impossibility of reparation, one case is as good (I should rather say as bad) as a hundred; and if there were none but Eliza Fenning's, that would be sufficient. Nay, if there were none at all, it would be enough to sustain this objection, that men of finite and limited judgment do inflict, on testimony which admits of doubt, an infinite and irreparable punishment. But there are on record numerous instances of mistake; many of them very generally known and immediately recognisable in the following summary, which I copy from the _New York Report_ already referred to.

"There have been cases in which groans have been heard in the apartment of the crime, which have attracted the steps of those on whose testimony the case has turned—when, on proceeding to the spot, they have found a man bending over the murdered body, a lantern in the left hand, and the knife yet dripping with the warm current in the blood-stained right, with horror-stricken countenance, and lips which, in the presence of the dead, seem to refuse to deny the crime in the very act of which he is thus surprised—and yet the man has been, many years after, when his memory alone could be benefited by the discovery, ascertained not to have been the real murderer! There have been cases in which, in a house in which were two persons alone, a murder has been committed on one of them—when many additional circumstances have fastened the imputation upon the other—and when, all apparent modes of access from without, being closed inward, the demonstration has seemed complete of the guilt for which that other has suffered the doom of the law—yet suffered _innocently_! There have been cases in which a father has been found murdered in an outhouse, the only person at home being a son, sworn by a sister to have been dissolute and undutiful, and anxious for the death of the father, and succession to the family property—when the track of his shoes in the snow is found from the house to the spot of the murder, and the hammer with which it was committed (known as his own), found, on a search, in the corner of one of his private drawers, with the bloody evidence of the deed only imperfectly effaced from it—and yet the son has been innocent!—the sister, years after, on her death-bed, confessing herself the fratricide as well as the parricide. There have been cases in which men have been hung on the most positive testimony to identity (aided by many suspicious circumstances), by persons familiar with their appearance, which have afterwards proved grievous mistakes, growing out of remarkable personal resemblance. There have been cases in which two men have been seen fighting in a field—an old enmity existing between them—the one found dead, killed by a stab from a pitchfork known

as belonging to the other, and which that other had been carrying, the pitch-fork lying by the side of the murdered man—and yet its owner has been afterwards found not to have been the author of the murder of which it had been the instrument, the true murderer sitting on the jury that tried him. There have been cases in which an innkeeper has been charged by one of his servants with the murder of a traveller, the servant deposing to having seen his master on the stranger's bed, strangling him, and afterwards rifling his pockets—another servant deposing that she saw him come down at that time at a very early hour in the morning, steal into the garden, take gold from his pocket, and carefully wrapping it up bury it in a designated spot—on the search of which the ground is found loose and freshly dug, and a sum of thirty pounds in gold found buried according to the description—the master, who confessed the burying of the money, with many evidences of guilt in his hesitation and confusion, has been hung of course, and proved innocent only too late. There have been cases in which a traveller has been robbed on the highway of twenty guineas, which he had taken the precaution to mark—one of these is found to have been paid away or changed by one of the servants of the inn which the traveller reaches the same evening—the servant is about the height of the robber, who had been cloaked and disguised—his master deposes to his having been recently unaccountably extravagant and flush of gold—and on his trunk being searched the other nineteen marked guineas and the traveller's purse are found there, the servant being asleep at the time, half-drunk—he is of course convicted and hung, for the crime of which his master was the author! There have been cases in which a father and daughter have been overheard in violent dispute—the words "_barbarity_", "_cruelly_", and "_death_", being heard frequently to proceed from the latter—the former goes out locking the door behind him—groans are overheard, and the words, "_cruel father_, _thou art the cause of my death_!"—on the room being opened she is found on the point of death from a wound in her side, and near her the knife with which it had been inflicted—and on being questioned as to her owing her death to her father, her last motion before expiring is an expression of assent—the father, on returning to the room, exhibits the usual evidences of guilt—he, too, is of course hung—and it is not till nearly a year afterwards that, on the discovery of conclusive evidence that it was a suicide, the vain reparation is made, to his memory by the public authorities, of—waving a pair of colours over his grave in token of the recognition of his innocence."

More than a hundred such cases are known, it is said in this Report, in English criminal jurisprudence. The same Report contains three striking cases of supposed criminals being unjustly hanged in America; and also five more in which people whose innocence was not afterwards established were put to death on evidence as purely circumstantial and as doubtful, to say the least of it, as any that was held to be sufficient in this general summary of legal murders. Mr. O'Connell defended, in Ireland, within five and twenty years, three brothers who were hanged for a murder of which they were afterwards shown to have been innocent. I cannot find the reference at this moment, but I have seen it stated on good authority, that but for the exertions, I think of the present Lord Chief Baron, six or seven innocent men would certainly have been hanged. Such are the instances of wrong judgment which are

known to us. How many more there may be in which the real murderers never disclosed their guilt, or were never discovered, and where the odium of great crimes still rests on guiltless people long since resolved to dust in their untimely graves, no human power can tell.

The effect of public executions on those who witness them, requires no better illustration, and can have none, than the scene which any execution in itself presents, and the general Police-office knowledge of the offences arising out of them. I have stated my belief that the study of rude scenes leads to the disregard of human life, and to murder. Referring, since that expression of opinion, to the very last trial for murder in London, I have made inquiry, and am assured that the youth now under sentence of death in Newgate for the murder of his master in Drury Lane, was a vigilant spectator of the three last public executions in this City. What effects a daily increasing familiarity with the scaffold, and with death upon it, wrought in France in the Great Revolution, everybody knows. In reference to this very question of Capital Punishment, Robespierre himself, before he was

“in blood stept in so far”,

warned the National Assembly that in taking human life, and in displaying before the eyes of the people scenes of cruelty and the bodies of murdered men, the law awakened ferocious prejudices, which gave birth to a long and growing train of their own kind. With how much reason this was said, let his own detestable name bear witness! If we would know how callous and hardened society, even in a peaceful and settled state, becomes to public executions when they are frequent, let us recollect how few they were who made the last attempt to stay the dreadful Monday-morning spectacles of men and women strung up in a row for crimes as different in their degree as our whole social scheme is different in its component parts, which, within some fifteen years or so, made human shambles of the Old Bailey.

There is no better way of testing the effect of public executions on those who do not actually behold them, but who read of them and know of them, than by inquiring into their efficiency in preventing crime. In this respect they have always, and in all countries, failed. According to all facts and figures, failed. In Russia, in Spain, in France, in Italy, in Belgium, in Sweden, in England, there has been one result. In Bombay, during the Recordership of Sir James Macintosh, there were fewer crimes in seven years without one execution, than in the preceding seven years with forty-seven executions; notwithstanding that in the seven years without capital punishment, the population had greatly increased, and there had been a large accession to the numbers of the ignorant and licentious soldiery, with whom the more violent offences originated. During the four wickedest years of the Bank of England (from 1814 to 1817, inclusive), when the one-pound note capital prosecutions were most numerous and shocking, the number of forged one-pound notes discovered by the Bank steadily increased, from the gross amount in the first year of £10,342, to the gross amount in the last of £28,412. But in every branch of this part of the subject—the inefficiency of capital punishment to prevent crime, and its efficiency to produce it—the body of evidence (if there were space to quote or analyse it here) is overpowering and resistless.

I have purposely deferred until now any reference to one objection which is urged against the abolition of capital punishment: I mean that objection which claims to rest on Scriptural authority.

It was excellently well said by Lord Melbourne, that no class of persons can be shown to be very miserable and oppressed, but some supporters of things as they are will immediately rise up and assert—not that those persons are moderately well to do, or that their lot in life has a reasonably bright side—but that they are, of all sorts and conditions of men, the happiest. In like manner, when a certain proceeding or institution is shown to be very wrong indeed, there is a class of people who rush to the fountainhead at once, and will have no less an authority for it than the Bible, on any terms.

So, we have the Bible appealed to in behalf of Capital Punishment. So, we have the Bible produced as a distinct authority for Slavery. So, American representatives find the title of their country to the Oregon territory distinctly laid down in the Book of Genesis. So, in course of time, we shall find Repudiation, perhaps, expressly commanded in the Sacred Writings.

It is enough for me to be satisfied, on calm inquiry and with reason, that an Institution or Custom is wrong and bad; and thence to feel assured that IT CANNOT BE a part of the law laid down by the Divinity who walked the earth. Though every other man who wields a pen should turn himself into a commentator on the Scriptures—not all their united efforts, pursued through our united lives, could ever persuade me that Slavery is a Christian law; nor, with one of these objections to an execution in my certain knowledge, that Executions are a Christian law, my will is not concerned. I could not, in my veneration for the life and lessons of Our Lord, believe it. If any text appeared to justify the claim, I would reject that limited appeal, and rest upon the character of the Redeemer, and the great scheme of His Religion, where, in its broad spirit, made so plain—and not this or that disputed letter—we all put our trust. But, happily, such doubts do not exist. The case is far too plain. The Rev. Henry Christmas, in a recent pamphlet on this subject, shows clearly that in five important versions of the Old Testament (to say nothing of versions of less note) the words, “by man”, in the often-quoted text, “Whoso sheddeth man’s blood, by man shall his blood be shed”, do not appear at all. We know that the law of Moses was delivered to certain wandering tribes in a peculiar and perfectly different social condition from that which prevails among us at this time. We know that the Christian Dispensation did distinctly repeal and annul certain portions of that law. We know that the doctrine of retributive justice or vengeance, was plainly disavowed by the Saviour. We know that on the only occasion of an offender, liable by the law to death, being brought before Him for His judgment, it was _not_ death. We know that He said, “Thou shalt not kill”. And if we are still to inflict capital punishment because of the Mosaic law (under which it was not the consequence of a legal proceeding, but an act of vengeance from the next of kin, which would surely be discouraged by our later laws if it were revived among the Jews just now) it would be equally reasonable to establish the lawfulness of a plurality of wives on the same authority.

Here I will leave this aspect of the question. I should not have treated of it at all in the columns of a newspaper, but for the possibility of being unjustly supposed to have given it no consideration in my own mind.

In bringing to a close these letters on a subject, in connection with which there is happily very little that is new to be said or written, I beg to be understood as advocating the total abolition of the Punishment of Death, as a general principle, for the advantage of society, for the prevention of crime, and without the least reference to, or tenderness for any individual malefactor whomsoever. Indeed, in most cases of murder, my feeling towards the culprit is very strongly and violently the reverse. I am the more desirous to be so understood, after reading a speech made by Mr. Macaulay in the House of Commons last Tuesday night, in which that accomplished gentleman hardly seemed to recognise the possibility of anybody entertaining an honest conviction of the inutility and bad effects of Capital Punishment in the abstract, founded on inquiry and reflection, without being the victim of “a kind of effeminate feeling”. Without staying to inquire what there may be that is especially manly and heroic in the advocacy of the gallows, or to express my admiration of Mr. Calcraft, the hangman, as doubtless one of the most manly specimens now in existence, I would simply hint a doubt, in all good humour, whether this be the true Macaulay way of meeting a great question? One of the instances of effeminacy of feeling quoted by Mr. Macaulay, I have reason to think was not quite fairly stated. I allude to the petition in Tawell’s case. I had neither hand nor part in it myself; but, unless I am greatly mistaken, it did pretty clearly set forth that Tawell was a most abhorred villain, and that the House might conclude how strongly the petitioners were opposed to the Punishment of Death, when they prayed for its non-infliction even in such a case.

THE SPIRIT OF CHIVALRY IN WESTMINSTER HALL

“OF all the cants that are canted in this canting world,” wrote Sterne, “kind Heaven defend me from the cant of Art!” We have no intention of tapping our little cask of cant, soured by the thunder of great men’s fame, for the refreshment of our readers: its freest draught would be unreasonably dear at a shilling, when the same small liquor may be had for nothing, at innumerable ready pipes and conduits.

But it is a main part of the design of this Magazine to sympathise with what is truly great and good; to scout the miserable discouragements that beset, especially in England, the upward path of men of high desert; and gladly to give honour where it is due, in right of Something achieved, tending to elevate the tastes and thoughts of all who contemplate it, and prove a lasting credit to the country of its birth.

Upon the walls of Westminster Hall, there hangs, at this time, such a Something. A composition of such marvellous beauty, of such infinite variety, of such masterly design, of such vigorous and skilful drawing, of such thought and fancy, of such surprising and delicate accuracy of detail, subserving one grand harmony, and one plain purpose, that it may be questioned whether the Fine Arts in any period of their history have known a more remarkable performance.

It is the cartoon of Daniel Maclise, “executed by order of the Commissioners”, and called The Spirit of Chivalry. It may be left an open question, whether or no this allegorical order on the part of the Commissioners, displays any uncommon felicity of idea. We rather think not; and are free to confess that we should like to have seen the Commissioners’ notion of the Spirit of Chivalry stated by themselves, in the first instance, on a sheet of foolscap, as the ground-plan of a model cartoon, with all the commissioned proportions of height and breadth. That the treatment of such an abstraction, for the purposes of Art, involves great and peculiar difficulties, no one who considers the subject for a moment can doubt. That nothing is easier to render it absurd and monstrous, is a position as little capable of dispute by anybody who has beheld another cartoon on the same subject in the same Hall, representing a Ghoule in a state of raving madness, dancing on a Body in a very high wind, to the great astonishment of John the Baptist’s head, which is looking on from a corner.

Mr. Maclise’s handling of the subject has by this time sunk into the hearts of thousands upon thousands of people. It is familiar knowledge among all classes and conditions of men. It is the great feature within the Hall, and the constant topic of discourse elsewhere. It has awakened in the great body of society a new interest in, and a new perception and a new love of, Art. Students of Art have sat before it, hour by hour, perusing in its many forms of Beauty, lessons to delight the world, and raise themselves, its future teachers, in its better estimation. Eyes well accustomed to the glories of the Vatican, the galleries of Florence, all the mightiest works of art in Europe, have grown dim before it with the strong emotions it inspires; ignorant, unlettered, drudging men, mere hewers and drawers, have gathered in a knot about it (as at our back a week ago), and read it, in their homely language, as it were a Book. In minds, the roughest and the most refined, it has alike found quick response; and will, and must, so long as it shall hold together.

For how can it be otherwise? Look up, upon the pressing throng who strive to win distinction from the Guardian Genius of all noble deeds and honourable renown,—a gentle Spirit, holding her fair state for their reward and recognition (do not be alarmed, my Lord Chamberlain; this is only in a picture); and say what young and ardent heart may not find one to beat in unison with it—beat high with generous aspiration like its own—in following their onward course, as it is traced by this great pencil! Is it the Love of Woman, in its truth and deep devotion, that inspires you? See it here! Is it Glory, as the world has learned to call the pomp and circumstance of arms? Behold it at the summit of its exaltation, with its mailed hand resting on the altar where the Spirit ministers. The Poet’s laurel-crown, which they who sit on thrones can neither twine or wither—is _that_ the aim of thy ambition? It is there, upon his brow; it wreathes his stately forehead, as he walks apart and holds communion with himself. The Palmer and the Bard are there; no solitary wayfarers, now; but two of a great company of pilgrims, climbing up to honour by the different paths that lead to the great end. And sure, amidst the gravity and beauty of them all—unseen in his own form, but shining in his spirit, out of every gallant shape and earnest thought—the Painter goes triumphant!

Or say that you who look upon this work, be old, and bring to it grey hairs, a head bowed down, a mind on which the day of life has spent itself, and the calm evening closes gently in. Is its appeal to you confined to its presentment of the Past? Have you no share in this, but while the grace of youth and the strong resolve of maturity are yours to aid you? Look up again. Look up where the spirit is enthroned, and see about her, reverend men, whose task is done; whose struggle is no more; who cluster round her as her train and council; who have lost no share or interest in that great rising up and progress, which bears upward with it every means of human happiness, but, true in Autumn to the purposes of Spring, are there to stimulate the race who follow in their steps; to contemplate, with hearts grown serious, not cold or sad, the striving in which they once had part; to die in that great Presence, which is Truth and Bravery, and Mercy to the Weak, beyond all power of separation.

It would be idle to observe of this last group that, both in execution and idea, they are of the very highest order of Art, and wonderfully serve the purpose of the picture. There is not one among its three-and-twenty heads of which the same remark might not be made. Neither will we treat of great effects produced by means quite powerless in other hands for such an end, or of the prodigious force and _colour_ which so separate this work from all the rest exhibited, that it would scarcely appear to be produced upon the same kind of surface by the same description of instrument. The bricks and stones and timbers of the Hall itself are not facts more indisputable than these.

It has been objected to this extraordinary work that it is too elaborately finished; too complete in its several parts. And Heaven knows, if it be judged in this respect by any standard in the Hall about it, it will find no parallel, nor anything approaching to it. But it is a design, intended to be afterwards copied and painted in fresco; and certain finish must be had at last, if not at first. It is very well to take it for granted in a Cartoon that a series of cross-lines, almost as rough and apart as the lattice-work of a garden summerhouse, represents the texture of a human face; but the face cannot be _painted_ so. A smear upon the paper may be understood, by virtue of the context gained from what surrounds it, to stand for a limb, or a body, or a cuirass, or a hat and feathers, or a flag, or a boot, or an angel. But when the time arrives for rendering these things in colours on a wall, they must be grappled with, and cannot be slurred over in this wise. Great misapprehension on this head seems to have been engendered in the minds of some observers by the famous cartoons of Raphael; but they forget that these were never intended as designs for fresco painting. They were designs for tapestry-work, which is susceptible of only certain broad and general effects, as no one better knew than the Great Master. Utterly detestable and vile as the tapestry is, compared with the immortal Cartoons from which it was worked, it is impossible for any man who casts his eyes upon it where it hangs at Rome, not to see immediately the special adaptation of the drawings to that end, and for that purpose. The aim of these Cartoons being wholly different, Mr. Maclise’s object, if we understand it, was to show precisely what he meant to do, and knew he could perform, in fresco, on a wall. And here his meaning is; worked out; without a compromise of any difficulty; without the avoidance of any disconcerting truth; expressed in all its beauty, strength, and power.

To what end? To be perpetuated hereafter in the high place of the chief Senate-House of England? To be wrought, as it were, into the very elements of which that Temple is composed; to co-endure with it, and still present, perhaps, some lingering traces of its ancient Beauty, when London shall have sunk into a grave of grass-grown ruin,—and the whole circle of the Arts, another revolution of the mighty wheel completed, shall be wrecked and broken?

Let us hope so. We will contemplate no other possibility—at present.

IN MEMORIAM W. M. THACKERAY

IT has been desired by some of the personal friends of the great English writer who established this magazine, {564} that its brief record of his having been stricken from among men should be written by the old comrade and brother in arms who pens these lines, and of whom he often wrote himself, and always with the warmest generosity.

I saw him first nearly twenty-eight years ago, when he proposed to become the illustrator of my earliest book. I saw him last, shortly before Christmas, at the Athenæum Club, when he told me that he had been in bed three days—that, after these attacks, he was troubled with cold shiverings, “which quite took the power of work out of him”—and that he had it in his mind to try a new remedy which he laughingly described. He was very cheerful, and looked very bright. In the night of that day week, he died.

The long interval between those two periods is marked in my remembrance of him by many occasions when he was supremely humorous, when he was irresistibly extravagant, when he was softened and serious, when he was charming with children. But, by none do I recall him more tenderly than by two or three that start out of the crowd, when he unexpectedly presented himself in my room, announcing how that some passage in a certain book had made him cry yesterday, and how that he had come to dinner, “because he couldn’t help it”, and must talk such passage over. No one can ever have seen him more genial, natural, cordial, fresh, and honestly impulsive, than I have seen him at those times. No one can be surer than I, of the greatness and the goodness of the heart that then disclosed itself.

We had our differences of opinion. I thought that he too much feigned a want of earnestness, and that he made a pretence of under-valuing his art, which was not good for the art that he held in trust. But, when we fell upon these topics, it was never very gravely, and I have a lively image of him in my mind, twisting both his hands in his hair, and stamping about, laughing, to make an end of the discussion.

When we were associated in remembrance of the late Mr. Douglas Jerrold, he delivered a public lecture in London, in the course of which, he read his very best contribution to Punch, describing the grown-up cares of a poor family of young children. No one hearing him could have doubted his natural gentleness, or his thoroughly unaffected manly sympathy with the weak and lowly. He read the paper most pathetically, and with a simplicity of tenderness that certainly moved one of his audience to tears. This was presently after his standing for Oxford, from which place he had dispatched his agent to me, with a droll note (to which he afterwards added a

verbal postscript), urging me to “come down and make a speech, and tell them who he was, for he doubted whether more than two of the electors had ever heard of him, and he thought there might be as many as six or eight who had heard of me”. He introduced the lecture just mentioned, with a reference to his late electioneering failure, which was full of good sense, good spirits, and good humour.

He had a particular delight in boys, and an excellent way with them. I remember his once asking me with fantastic gravity, when he had been to Eton where my eldest son then was, whether I felt as he did in regard of never seeing a boy without wanting instantly to give him a sovereign? I thought of this when I looked down into his grave, after he was laid there, for I looked down into it over the shoulder of a boy to whom he had been kind.

These are slight remembrances; but it is to little familiar things suggestive of the voice, look, manner, never, never more to be encountered on this earth, that the mind first turns in a bereavement. And greater things that are known of him, in the way of his warm affections, his quiet endurance, his unselfish thoughtfulness for others, and his munificent hand, may not be told.

If, in the reckless vivacity of his youth, his satirical pen had ever gone astray or done amiss, he had caused it to prefer its own petition for forgiveness, long before:—

I’ve writ the foolish fancy of his brain; The aimless jest that, striking, hath caused pain; The idle word that he’d wish back again.

In no pages should I take it upon myself at this time to discourse of his books, of his refined knowledge of character, of his subtle acquaintance with the weaknesses of human nature, of his delightful playfulness as an essayist, of his quaint and touching ballads, of his mastery over the English language. Least of all, in these pages, enriched by his brilliant qualities from the first of the series, and beforehand accepted by the Public through the strength of his great name.

But, on the table before me, there lies all that he had written of his latest and last story. That it would be very sad to any one—that it is inexpressibly so to a writer—in its evidences of matured designs never to be accomplished, of intentions begun to be executed and destined never to be completed, of careful preparation for long roads of thought that he was never to traverse, and for shining goals that he was never to reach, will be readily believed. The pain, however, that I have felt in perusing it, has not been deeper than the conviction that he was in the healthiest vigour of his powers when he wrought on this last labour. In respect of earnest feeling, far-seeing purpose, character, incident, and a certain loving picturesqueness blending the whole, I believe it to be much the best of all his works. That he fully meant it to be so, that he had become strongly attached to it, and that he bestowed great pains upon it, I trace in almost every page. It contains one picture which must have cost him extreme distress, and which is a masterpiece. There are two children in it, touched with a hand as loving and tender as ever a father caressed his little child with. There is some young love as pure and innocent and pretty as the truth. And it is very remarkable that, by reason of the singular construction of the story, more than one main incident usually belonging to the end of such a fiction is anticipated in the beginning, and thus

there is an approach to completeness in the fragment, as to the satisfaction of the reader’s mind concerning the most interesting persons, which could hardly have been better attained if the writer’s breaking-off had been foreseen.

The last line he wrote, and the last proof he corrected, are among these papers through which I have so sorrowfully made my way. The condition of the little pages of manuscript where Death stopped his hand, shows that he had carried them about, and often taken them out of his pocket here and there, for patient revision and interlineation. The last words he corrected in print were, “And my heart throbbed with an exquisite bliss”. GOD grant that on that Christmas Eve when he laid his head back on his pillow and threw up his arms as he had been wont to do when very weary, some consciousness of duty done and Christian hope throughout life humbly cherished, may have caused his own heart so to throb, when he passed away to his Redeemer’s rest!

He was found peacefully lying as above described, composed, undisturbed, and to all appearance asleep, on the twenty-fourth of December 1863. He was only in his fifty-third year; so young a man that the mother who blessed him in his first sleep blessed him in his last. Twenty years before, he had written, after being in a white squall:

And when, its force expended, The harmless storm was ended, And, as the sunrise splendid Came blushing o’er the sea; I thought, as day was breaking, My little girls were waking, And smiling, and making A prayer at home for me.

Those little girls had grown to be women when the mournful day broke that saw their father lying dead. In those twenty years of companionship with him they had learned much from him; and one of them has a literary course before her, worthy of her famous name.

On the bright wintry day, the last but one of the old year, he was laid in his grave at Kensal Green, there to mingle the dust to which the mortal part of him had returned, with that of a third child, lost in her infancy years ago. The heads of a great concourse of his fellow-workers in the Arts were bowed around his tomb.

ADELAIDE ANNE PROCTER INTRODUCTION TO HER “LEGENDS AND LYRICS”

IN the spring of the year 1853, I observed, as conductor of the weekly journal _Household Words_, a short poem among the proffered contributions, very different, as I thought, from the shoal of verses perpetually setting through the office of such a periodical, and possessing much more merit. Its authoress was quite unknown to me. She was one Miss Mary Berwick, whom I had never heard of; and she was to be addressed by letter, if addressed at all, at a circulating library in the western district of London. Through this channel, Miss Berwick was informed that her poem was accepted, and was invited to send another. She complied, and became a regular and frequent contributor. Many letters passed between the journal and Miss Berwick, but Miss Berwick herself was never seen.

How we came gradually to establish, at the office of _Household Words_, that we knew all about Miss Berwick, I have never discovered. But we settled somehow, to

our complete satisfaction, that she was governess in a family; that she went to Italy in that capacity, and returned; and that she had long been in the same family. We really knew nothing whatever of her, except that she was remarkably business-like, punctual, self-reliant, and reliable: so I suppose we insensibly invented the rest. For myself, my mother was not a more real personage to me, than Miss Berwick the governess became.

This went on until December, 1854, when the Christmas number, entitled _The Seven Poor Travellers_, was sent to press. Happening to be going to dine that day with an old and dear friend, distinguished in literature as Barry Cornwall, I took with me an early proof of that number, and remarked, as I laid it on the drawing-room table, that it contained a very pretty poem, written by a certain Miss Berwick. Next day brought me the disclosure that I had so spoken of the poem to the mother of its writer, in its writer's presence; that I had no such correspondent in existence as Miss Berwick; and that the name had been assumed by Barry Cornwall's eldest daughter, Miss Adelaide Anne Procter.

The anecdote I have here noted down, besides serving to explain why the parents of the late Miss Procter have looked to me for these poor words of remembrance of their lamented child, strikingly illustrates the honesty, independence, and quiet dignity, of the lady's character. I had known her when she was very young; I had been honoured with her father's friendship when I was myself a young aspirant; and she had said at home, "If I send him, in my own name, verses that he does not honestly like, either it will be very painful to him to return them, or he will print them for papa's sake, and not for their own. So I have made up my mind to take my chance fairly with the unknown volunteers."

Perhaps it requires an editor's experience of the profoundly unreasonable grounds on which he is often urged to accept unsuitable articles—such as having been to school with the writer's husband's brother-in-law, or having lent an alpenstock in Switzerland to the writer's wife's nephew, when that interesting stranger had broken his own—fully to appreciate the delicacy and the self-respect of this resolution.

Some verses by Miss Procter had been published in the _Book of Beauty_, ten years before she became Miss Berwick. With the exception of two poems in the _Cornhill Magazine_, two in _Good Words_, and others in a little book called _A Chaplet of Verses_ (issued in 1862 for the benefit of a Night Refuge), her published writings first appeared in _Household Words_, or _All the Year Round_. The present edition contains the whole of her _Legends and Lyrics_, and originates in the great favour with which they have been received by the public.

Miss Procter was born in Bedford Square, London, on the 30th of October, 1825. Her love of poetry was conspicuous at so early an age, that I have before me a tiny album made of small note-paper, into which her favourite passages were copied for her by her mother's hand before she herself could write. It looks as if she had carried it about, as another little girl might have carried a doll. She soon displayed a remarkable memory, and great quickness of apprehension. When she was quite a young child, she learned with facility several of the problems of Euclid. As she grew

older, she acquired the French, Italian, and German languages; became a clever pianoforte player; and showed a true taste and sentiment in drawing. But, as soon as she had completely vanquished the difficulties of any one branch of study, it was her way to lose interest in it, and pass to another. While her mental resources were being trained, it was not at all suspected in her family that she had any gift of authorship, or any ambition to become a writer. Her father had no idea of her having ever attempted to turn a rhyme, until her first little poem saw the light in print.

When she attained to womanhood, she had read an extraordinary number of books, and throughout her life she was always largely adding to the number. In 1853 she went to Turin and its neighbourhood, on a visit to her aunt, a Roman Catholic lady. As Miss Procter had herself professed the Roman Catholic Faith two years before, she entered with the greater ardour on the study of the Piedmontese dialect, and the observation of the habits and manners of the peasantry. In the former, she soon became a proficient. On the latter head, I extract from her familiar letters written home to England at the time, two pleasant pieces of description.

A BETROTHAL

“We have been to a ball, of which I must give you a description. Last Tuesday we had just done dinner at about seven, and stepped out into the balcony to look at the remains of the sunset behind the mountains, when we heard very distinctly a band of music, which rather excited my astonishment, as a solitary organ is the utmost that toils up here. I went out of the room for a few minutes, and, on my returning, Emily said, ‘Oh! That band is playing at the farmer’s near here. The daughter is _fiancée_ to-day, and they have a ball.’ I said, ‘I wish I was going!’ ‘Well,’ replied she, ‘the farmer’s wife did call to invite us.’ ‘Then I shall certainly go,’ I exclaimed. I applied to Madame B., who said she would like it very much, and we had better go, children and all. Some of the servants were already gone. We rushed away to put on some shawls, and put off any shred of black we might have about us (as the people would have been quite annoyed if we had appeared on such an occasion with any black), and we started. When we reached the farmer’s, which is a stone’s throw above our house, we were received with great enthusiasm; the only drawback being, that no one spoke French, and we did not yet speak Piedmontese. We were placed on a bench against the wall, and the people went on dancing. The room was a large whitewashed kitchen (I suppose), with several large pictures in black frames, and very smoky. I distinguished the Martyrdom of Saint Sebastian, and the others appeared equally lively and appropriate subjects. Whether they were Old Masters or not, and if so, by whom, I could not ascertain. The band were seated opposite us. Five men, with wind instruments, part of the band of the National Guard, to which the farmer’s sons belong. They played really admirably, and I began to be afraid that some idea of our dignity would prevent me getting a partner; so, by Madame B.’s advice, I went up to the bride, and offered to dance with her. Such a handsome young woman! Like one of Uwins’s pictures. Very dark, with a quantity of black hair, and on an immense scale. The children were already dancing, as well as the maids. After we came to an end of our dance, which was what they called a Polka-Mazourka, I saw the bride trying to

screw up the courage of her _fiancé_ to ask me to dance, which after a little hesitation he did. And admirably he danced, as indeed they all did—in excellent time, and with a little more spirit than one sees in a ball-room. In fact, they were very like one's ordinary partners, except that they wore earrings and were in their shirt-sleeves, and truth compels me to state that they decidedly smelt of garlic. Some of them had been smoking, but threw away their cigars when we came in. The only thing that did not look cheerful was, that the room was only lighted by two or three oil-lamps, and that there seemed to be no preparation for refreshments. Madame B., seeing this, whispered to her maid, who disengaged herself from her partner, and ran off to the house; she and the kitchenmaid presently returning with a large tray covered with all kinds of cakes (of which we are great consumers and always have a stock), and a large hamper full of bottles of wine, with coffee and sugar. This seemed all very acceptable. The _fiancée_ was requested to distribute the eatables, and a bucket of water being produced to wash the glasses in, the wine disappeared very quickly—as fast as they could open the bottles. But, elated, I suppose, by this, the floor was sprinkled with water, and the musicians played a Monferrino, which is a Piedmontese dance. Madame B. danced with the farmer's son, and Emily with another distinguished member of the company. It was very fatiguing—something like a Scotch reel. My partner was a little man, like Perrot, and very proud of his dancing. He cut in the air and twisted about, until I was out of breath, though my attempts to imitate him were feeble in the extreme. At last, after seven or eight dances, I was obliged to sit down. We stayed till nine, and I was so dead beat with the heat that I could hardly crawl about the house, and in an agony with the cramp, it is so long since I have danced."

A MARRIAGE

"The wedding of the farmer's daughter has taken place. We had hoped it would have been in the little chapel of our house, but it seems some special permission was necessary, and they applied for it too late. They all said, "This is the Constitution. There would have been no difficulty before!" the lower classes making the poor Constitution the scapegoat for everything they don't like. So as it was impossible for us to climb up to the church where the wedding was to be, we contented ourselves with seeing the procession pass. It was not a very large one, for, it requiring some activity to go up, all the old people remained at home. It is not etiquette for the bride's mother to go, and no unmarried woman can go to a wedding—I suppose for fear of its making her discontented with her own position. The procession stopped at our door, for the bride to receive our congratulations. She was dressed in a shot silk, with a yellow handkerchief, and rows of a large gold chain. In the afternoon they sent to request us to go there. On our arrival we found them dancing out of doors, and a most melancholy affair it was. All the bride's sisters were not to be recognised, they had cried so. The mother sat in the house, and could not appear. And the bride was sobbing so, she could hardly stand! The most melancholy spectacle of all to my mind was, that the bridegroom was decidedly tipsy. He seemed rather affronted at all the distress. We danced a Monferrino; I with the bridegroom; and the bride crying the whole time. The company did their utmost to enliven her by firing pistols, but without

success, and at last they began a series of yells, which reminded me of a set of savages. But even this delicate method of consolation failed, and the wishing good-bye began. It was altogether so melancholy an affair that Madame B. dropped a few tears, and I was very near it, particularly when the poor mother came out to see the last of her daughter, who was finally dragged off between her brother and uncle, with a last explosion of pistols. As she lives quite near, makes an excellent match, and is one of nine children, it really was a most desirable marriage, in spite of all the show of distress. Albert was so discomfited by it, that he forgot to kiss the bride as he had intended to do, and therefore went to call upon her yesterday, and found her very smiling in her new house, and supplied the omission. The cook came home from the wedding, declaring she was cured of any wish to marry—but I would not recommend any man to act upon that threat and make her an offer. In a couple of days we had some rolls of the bride's first baking, which they call Madonnas. The musicians, it seems, were in the same state as the bridegroom, for, in escorting her home, they all fell down in the mud. My wrath against the bridegroom is somewhat calmed by finding that it is considered bad luck if he does not get tipsy at his wedding."

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Those readers of Miss Procter's poems who should suppose from their tone that her mind was of a gloomy or despondent cast, would be curiously mistaken. She was exceedingly humorous, and had a great delight in humour. Cheerfulness was habitual with her, she was very ready at a sally or a reply, and in her laugh (as I remember well) there was an unusual vivacity, enjoyment, and sense of drollery. She was perfectly unconstrained and unaffected: as modestly silent about her productions, as she was generous with their pecuniary results. She was a friend who inspired the strongest attachments; she was a finely sympathetic woman, with a great accordant heart and a sterling noble nature. No claim can be set up for her, thank God, to the possession of any of the conventional poetical qualities. She never by any means held the opinion that she was among the greatest of human beings; she never suspected the existence of a conspiracy on the part of mankind against her; she never recognised in her best friends, her worst enemies; she never cultivated the luxury of being misunderstood and unappreciated; she would far rather have died without seeing a line of her composition in print, than that I should have maundered about her, here, as "the Poet", or "the Poetess".

With the recollection of Miss Procter as a mere child and as a woman, fresh upon me, it is natural that I should linger on my way to the close of this brief record, avoiding its end. But, even as the close came upon her, so must it come here.

Always impelled by an intense conviction that her life must not be dreamed away, and that her indulgence in her favourite pursuits must be balanced by action in the real world around her, she was indefatigable in her endeavours to do some good. Naturally enthusiastic, and conscientiously impressed with a deep sense of her Christian duty to her neighbour, she devoted herself to a variety of benevolent objects. Now, it was the visitation of the sick, that had possession of her; now, it was the sheltering of the houseless; now, it was the elementary teaching of the densely ignorant; now, it was the raising up of those who had wandered and got trodden

under foot; now, it was the wider employment of her own sex in the general business of life; now, it was all these things at once. Perfectly unselfish, swift to sympathise and eager to relieve, she wrought at such designs with a flushed earnestness that disregarded season, weather, time of day or night, food, rest. Under such a hurry of the spirits, and such incessant occupation, the strongest constitution will commonly go down. Hers, neither of the strongest nor the weakest, yielded to the burden, and began to sink.

To have saved her life, then, by taking action on the warning that shone in her eyes and sounded in her voice, would have been impossible, without changing her nature. As long as the power of moving about in the old way was left to her, she must exercise it, or be killed by the restraint. And so the time came when she could move about no longer, and took to her bed.

All the restlessness gone then, and all the sweet patience of her natural disposition purified by the resignation of her soul, she lay upon her bed through the whole round of changes of the seasons. She lay upon her bed through fifteen months. In all that time, her old cheerfulness never quitted her. In all that time, not an impatient or a querulous minute can be remembered.

At length, at midnight on the second of February, 1864, she turned down a leaf of a little book she was reading, and shut it up.

The ministering hand that had copied the verses into the tiny album was soon around her neck, and she quietly asked, as the clock was on the stroke of one:

“Do you think I am dying, mamma?”

“I think you are very, very ill to-night, my dear!”

“Send for my sister. My feet are so cold. Lift me up?”

Her sister entering as they raised her, she said: “It has come at last!” And with a bright and happy smile, looked upward, and departed.

Well had she written:

Why shouldst thou fear the beautiful angel, Death, Who waits thee at the portals of the skies, Ready to kiss away thy struggling breath, Ready with gentle hand to close thine eyes?

Oh what were life, if life were all? Thine eyes Are blinded by their tears, or thou wouldst see Thy treasures wait thee in the far-off skies, And Death, thy friend, will give them all to thee.

CHAUNCEY HARE TOWNSHEND EXPLANATORY INTRODUCTION TO “RELIGIOUS OPINIONS” BY THE LATE REVEREND CHAUNCEY HARE TOWNSHEND

MR. CHAUNCEY HARE TOWNSHEND died in London, on the 25th of February 1868. His will contained the following passage:—

“I appoint my friend Charles Dickens, of Gad’s Hill Place, in the County of Kent, Esquire, my literary executor; and beg of him to publish without alteration as much of my notes and reflections as may make known my opinions on religious matters, they being such as I verily believe would be conducive to the happiness of mankind.”

In pursuance of the foregoing injunction, the Literary Executor so appointed (not previously aware that the publication of any Religious Opinions would be enjoined upon him), applied himself to the examination of the numerous papers left by his deceased friend. Some of these were in Lausanne, and some were in London. Considerable delay occurred before they could be got together, arising out of certain claims preferred, and formalities insisted on by the authorities of the Canton de Vaud. When at length the whole of his late friend’s papers passed into the Literary Executor’s hands, it was found that _Religious Opinions_ were scattered up and down through a variety of memoranda and note-books, the gradual accumulation of years and years. Many of the following pages were carefully transcribed, numbered, connected, and prepared for the press; but many more were dispersed fragments, originally written in pencil, afterwards inked over, the intended sequence of which in the writer’s mind, it was extremely difficult to follow. These again were intermixed with journals of travel, fragments of poems, critical essays, voluminous correspondence, and old school-exercises and college themes, having no kind of connection with them.

To publish such materials “without alteration”, was simply impossible. But finding everywhere internal evidence that Mr. Townshend’s _Religious Opinions_ had been constantly meditated and reconsidered with great pains and sincerity throughout his life, the Literary Executor carefully compiled them (always in the writer’s exact words), and endeavoured in piecing them together to avoid needless repetition. He does not doubt that Mr. Townshend held the clue to a precise plan, which could have greatly simplified the presentation of these views; and he has devoted the first section of this volume to Mr. Townshend’s own notes of his comprehensive intentions. Proofs of the devout spirit in which they were conceived, and of the sense of responsibility with which he worked at them, abound through the whole mass of papers. Mr. Townshend’s varied attainments, delicate tastes, and amiable and gentle nature, caused him to be beloved through life by the variously distinguished men who were his compeers at Cambridge long ago. To his Literary Executor he was always a warmly-attached and sympathetic friend. To the public, he has been a most generous benefactor, both in his munificent bequest of his collection of precious stones in the South Kensington Museum, and in the devotion of the bulk of his property to the education of poor children.

ON MR. FECHTER’S ACTING

THE distinguished artist whose name is prefixed to these remarks purposes to leave England for a professional tour in the United States. A few words from me, in reference to his merits as an actor, I hope may not be uninteresting to some readers, in advance of his publicly proving them before an American audience, and I know will not be unacceptable to my intimate friend. I state at once that Mr. Fechter holds that

relation towards me; not only because it is the fact, but also because our friendship originated in my public appreciation of him. I had studied his acting closely, and had admired it highly, both in Paris and in London, years before we exchanged a word. Consequently my appreciation is not the result of personal regard, but personal regard has sprung out of my appreciation.

The first quality observable in Mr. Fechter's acting is, that it is in the highest degree romantic. However elaborated in minute details, there is always a peculiar dash and vigour in it, like the fresh atmosphere of the story whereof it is a part. When he is on the stage, it seems to me as though the story were transpiring before me for the first and last time. Thus there is a fervour in his love-making—a suffusion of his whole being with the rapture of his passion—that sheds a glory on its object, and raises her, before the eyes of the audience, into the light in which he sees her. It was this remarkable power that took Paris by storm when he became famous in the lover's part in the _Dame aux Camélias_. It is a short part, really comprised in two scenes, but, as he acted it (he was its original representative), it left its poetic and exalting influence on the heroine throughout the play. A woman who could be so loved—who could be so devotedly and romantically adored—had a hold upon the general sympathy with which nothing less absorbing and complete could have invested her. When I first saw this play and this actor, I could not in forming my lenient judgment of the heroine, forget that she had been the inspiration of a passion of which I had beheld such profound and affecting marks. I said to myself, as a child might have said: "A bad woman could not have been the object of that wonderful tenderness, could not have so subdued that worshipping heart, could not have drawn such tears from such a lover". I am persuaded that the same effect was wrought upon the Parisian audiences, both consciously and unconsciously, to a very great extent, and that what was morally disagreeable in the _Dame aux Camélias_ first got lost in this brilliant halo of romance. I have seen the same play with the same part otherwise acted, and in exact degree as the love became dull and earthy, the heroine descended from her pedestal.

In Ruy Blas, in the Master of Ravenswood, and in the Lady of Lyons—three dramas in which Mr. Fechter especially shines as a lover, but notably in the first—this remarkable power of surrounding the beloved creature, in the eyes of the audience, with the fascination that she has for him, is strikingly displayed. That observer must be cold indeed who does not feel, when Ruy Blas stands in the presence of the young unwedded Queen of Spain, that the air is enchanted; or, when she bends over him, laying her tender touch upon his bloody breast, that it is better so to die than to live apart from her, and that she is worthy to be so died for. When the Master of Ravenswood declares his love to Lucy Ashton, and she hers to him, and when in a burst of rapture, he kisses the skirt of her dress, we feel as though we touched it with our lips to stay our goddess from soaring away into the very heavens. And when they plight their troth and break the piece of gold, it is we—not Edgar—who quickly exchange our half for the half she was about to hang about her neck, solely because the latter has for an instant touched the bosom we so dearly love. Again, in the Lady of Lyons: the picture on the easel in the poor cottage studio is not the unfinished portrait of a vain and arrogant girl, but becomes the sketch of a Soul's high ambition

and aspiration here and hereafter.

Picturesqueness is a quality above all others pervading Mr. Fechter's assumptions. Himself a skilled painter and sculptor, learned in the history of costume, and informing those accomplishments and that knowledge with a similar infusion of romance (for romance is inseparable from the man), he is always a picture,—always a picture in its right place in the group, always in true composition with the background of the scene. For picturesqueness of manner, note so trivial a thing as the turn of his hand in beckoning from a window, in Ruy Blas, to a personage down in an outer courtyard to come up; or his assumption of the Duke's livery in the same scene; or his writing a letter from dictation. In the last scene of Victor Hugo's noble drama, his bearing becomes positively inspired; and his sudden assumption of the attitude of the headsman, in his denunciation of the Duke and threat to be his executioner, is, so far as I know, one of the most ferociously picturesque things conceivable on the stage.

The foregoing use of the word "ferociously" reminds me to remark that this artist is a master of passionate vehemence; in which aspect he appears to me to represent, perhaps more than in any other, an interesting union of characteristics of two great nations,—the French and the Anglo-Saxon. Born in London of a French mother, by a German father, but reared entirely in England and in France, there is, in his fury, a combination of French suddenness and impressibility with our more slowly demonstrative Anglo-Saxon way when we get, as we say, "our blood up", that produces an intensely fiery result. The fusion of two races is in it, and one cannot decidedly say that it belongs to either; but one can most decidedly say that it belongs to a powerful concentration of human passion and emotion, and to human nature.

Mr. Fechter has been in the main more accustomed to speak French than to speak English, and therefore he speaks our language with a French accent. But whosoever should suppose that he does not speak English fluently, plainly, distinctly, and with a perfect understanding of the meaning, weight, and value of every word, would be greatly mistaken. Not only is his knowledge of English—extending to the most subtle idiom, or the most recondite cant phrase—more extensive than that of many of us who have English for our mother-tongue, but his delivery of Shakespeare's blank verse is remarkably facile, musical, and intelligent. To be in a sort of pain for him, as one sometimes is for a foreigner speaking English, or to be in any doubt of his having twenty synonymes at his tongue's end if he should want one, is out of the question after having been of his audience.

A few words on two of his Shakespearian impersonations, and I shall have indicated enough, in advance of Mr. Fechter's presentation of himself. That quality of picturesqueness, on which I have already laid stress, is strikingly developed in his Iago, and yet it is so judiciously governed that his Iago is not in the least picturesque according to the conventional ways of frowning, sneering, diabolically grinning, and elaborately doing everything else that would induce Othello to run him through the body very early in the play. Mr. Fechter's is the Iago who could, and did, make friends, who could dissect his master's soul, without flourishing his scalpel as if it were a walking-stick, who could overpower Emilia by other arts than a

sign-of-the-Saracen's-Head grimness; who could be a boon companion without _ipso facto_ warning all beholders off by the portentous phenomenon; who could sing a song and clink a can naturally enough, and stab men really in the dark,—not in a transparent notification of himself as going about seeking whom to stab. Mr. Fechter's Iago is no more in the conventional psychological mode than in the conventional hussar pantaloons and boots; and you shall see the picturesqueness of his wearing borne out in his bearing all through the tragedy down to the moment when he becomes invincibly and consistently dumb.

Perhaps no innovation in Art was ever accepted with so much favour by so many intellectual persons pre-committed to, and preoccupied by, another system, as Mr. Fechter's Hamlet. I take this to have been the case (as it unquestionably was in London), not because of its picturesqueness, not because of its novelty, not because of its many scattered beauties, but because of its perfect consistency with itself. As the animal-painter said of his favourite picture of rabbits that there was more nature about those rabbits than you usually found in rabbits, so it may be said of Mr. Fechter's Hamlet, that there was more consistency about that Hamlet than you usually found in Hamlets. Its great and satisfying originality was in its possessing the merit of a distinctly conceived and executed idea. From the first appearance of the broken glass of fashion and mould of form, pale and worn with weeping for his father's death, and remotely suspicious of its cause, to his final struggle with Horatio for the fatal cup, there were cohesion and coherence in Mr. Fechter's view of the character. Devrient, the German actor, had, some years before in London, fluttered the theatrical doves considerably, by such changes as being seated when instructing the players, and like mild departures from established usage; but he had worn, in the main, the old nondescript dress, and had held forth, in the main, in the old way, hovering between sanity and madness. I do not remember whether he wore his hair crisply curled short, as if he were going to an everlasting dancing-master's party at the Danish court; but I do remember that most other Hamlets since the great Kemble had been bound to do so. Mr. Fechter's Hamlet, a pale, woebegone Norseman with long flaxen hair, wearing a strange garb never associated with the part upon the English stage (if ever seen there at all) and making a piratical swoop upon the whole fleet of little theatrical prescriptions without meaning, or, like Dr. Johnson's celebrated friend, with only one idea in them, and that a wrong one, never could have achieved its extraordinary success but for its animation by one pervading purpose, to which all changes were made intelligently subservient. The bearing of this purpose on the treatment of Ophelia, on the death of Polonius, and on the old student fellowship between Hamlet and Horatio, was exceedingly striking; and the difference between picturesqueness of stage arrangement for mere stage effect, and for the elucidation of a meaning, was well displayed in there having been a gallery of musicians at the Play, and in one of them passing on his way out, with his instrument in his hand, when Hamlet, seeing it, took it from him, to point his talk with Rosencrantz and Guildenstern.

This leads me to the observation with which I have all along desired to conclude: that Mr. Fechter's romance and picturesqueness are always united to a true artist's intelligence, and a true artist's training in a true artist's spirit. He became one of the

company of the Théâtre Français when he was a very young man, and he has cultivated his natural gifts in the best schools. I cannot wish my friend a better audience than he will have in the American people, and I cannot wish them a better actor than they will have in my friend.

FOOTNOTE

{564} Cornhill Magazine.